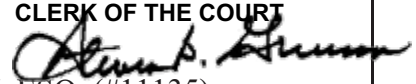


KEMP JONES, LLP
3800 Howard Hughes Parkway
Seventeenth Floor
Las Vegas, Nevada 89169
(702) 385-6000 • Fax (702) 385-6001
kjc@kempjones.com

Electronically Filed
1/30/2024 12:50 PM
Steven D. Grierson
CLERK OF THE COURT



COMPB

AARON D. FORD, ESQ.
Attorney General
ERNEST FIGUEROA, ESQ.
Consumer Advocate
MARK J. KRUEGER, ESQ. (#7410)
Chief Deputy Attorney General
**State of Nevada, Office of the Attorney
General, Bureau of Consumer
Protection**
100 North Carson Street
Carson City, Nevada 89701-4717
T: (702) 684-1100; F: (702) 684-1108
mkrueger@ag.nv.gov

MICHAEL J. GAYAN, ESQ. (#11135)

m.gayan@kempjones.com

J. RANDALL JONES, ESQ. (#1927)

r.jones@kempjones.com

DON SPRINGMEYER, ESQ. (#10024) **CASE NO. A-24-886120-B**

d.springmeyer@kempjones.com

KEMP JONES, LLP

3800 Howard Hughes Parkway, 17th Floor
Las Vegas, Nevada 89169

T: (702) 385-6000; F: (702) 385-6001

Department 15

N. MAJED NACHAWATI, ESQ.

mn@ntrial.com

BRIAN E. MCMATH, ESQ.

bmcmath@ntrial.com

PHILIP D. CARLSON, ESQ.

pcarlson@ntrial.com

(pro hac vice forthcoming)

NACHAWATI LAW GROUP

5489 Blair Road

Dallas, Texas 75231

T: 214-890-0711; F: 214-890-0712

DAVID F. SLADE, ESQ.

slade@wh.law

(pro hac vice forthcoming)

WH LAW

1 Riverfront Place, Suite 745

North Little Rock, Arkansas 72114

T: (501) 404-2052; F: (501) 222-3027

Attorneys for Plaintiff State of Nevada

DISTRICT COURT

CLARK COUNTY, NEVADA

STATE OF NEVADA,

Plaintiff,

vs.

META PLATFORMS, INC. f/k/a
FACEBOOK, INC.; INSTAGRAM, LLC,

Defendants.

Case No.:

Dept. No.:

**COMPLAINT AND DEMAND FOR JURY
TRIAL**

Exempt from Arbitration:

Business Court Matter

Declaratory Relief Sought

Amount In Controversy Greater than \$50,000

Business Court Requested:

EDCR 1.61 – Enhanced Case Management

TABLE OF CONTENTS

1	INTRODUCTION	1
2	PARTIES	8
3	JURISDICTION AND VENUE	9
4	FACTS	10
5	I. Instagram, Generally.....	10
6	A. Meta Offers Its Platforms in Exchange for Consumers’ Valuable Consideration that Enables Meta to Sell Advertising.	13
7	B. Account Creation for Instagram.....	15
8	C. Meta Prioritizes Acquiring Young Users and Maximizing Their Time Spent on its Platforms.....	17
9	D. Social Media Use—and Ensuing Exposure to Harms—is Especially Prevalent Among Young Users of Color.	20
10	E. Meta Directs Its Business Towards Nevada.	22
11	II. Meta Utilizes Multiple Design Practices Purposely Intended to Hook Young Users and Keep Them On Its Platforms In Perpetuity.....	26
12	A. By Meta’s Design, its Platforms Induce Compulsive Use Among Young Users.....	26
13	B. [REDACTED]	27
14	C. Meta Implements Specific Design Elements Into Instagram to Induce Compulsive Use. 31	
15	1. Low-Friction Variable Rewards: Endless Scroll, Autoplay, and Reels.....	31
16	i. Endless Scroll.....	33
17	ii. Autoplay.....	34
18	iii. Reels.....	35
19	2. Social Manipulation	36
20	i. Quantified Popularity of a Minor’s Account or Content	37
21	3. Ephemeral Content.....	46
22	4. Push Notifications: Audio, Visual, and Haptic Alerts	48
23	5. Harmful Filters.....	50
24	D. The Challenged Platform Features Have No Relation to Traditional Publishing Activities—Any Content They Utilize Is Distinct From Their Functionality and the Harm They Cause.....	55
25	III. Meta Knows That [REDACTED] Among Young Users.	56
26	A. Meta Harms Young Users by Inducing Compulsive Use.....	60
27	1. Mental Health Harms	60
28	2. Harm to Body Image.....	64
	3. “Problematic” Internet Use	67
	4. Harm to Physical Health	68
	5. Privacy Harms.....	71
	6. Risk to Physical Safety	73

IV. Meta Engages in Deceptive Conduct By Omitting and Misrepresenting Material Facts About Instagram.....	74
A. Meta Did Not Disclose Its Knowledge That [REDACTED].....	75
1. Meta's [REDACTED].....	80
2. Meta [REDACTED] al [REDACTED].....	84
3. Meta Did Not Disclose Its Knowledge That [REDACTED] Young Users.....	86
B. Meta Promoted Misleading Metrics About the Incidence of Harms.....	91
1. Meta's Community Standards Enforcement Reports [REDACTED].....	91
2. Meta's [REDACTED].....	96
C. Meta Deceived Consumers by [REDACTED].....	98
D. Through Public Misrepresentations, Meta Leads the Public to Trust That [REDACTED].....	101
1. To Engender Public Trust, Meta Created the False Impression That It Does Not [REDACTED].....	101
2. Meta Deceptively Testified That It Age-Gates Content Inappropriate for Young Users.....	102
3. Meta Deceptively Testified That It Does Not Place a Monetary Value on Young Users.....	104
4. Meta Created the Misleading Impression That It Was Not [REDACTED].....	105
5. Meta Created the Impression That Its Platforms Are Not [REDACTED] to the Contrary.....	106
V. Meta [REDACTED].....	107
CAUSES OF ACTION.....	109
COUNT I: DECEPTIVE ACTS OR PRACTICES BY DEFENDANTS IN VIOLATION OF NEVADA'S DECEPTIVE TRADE PRACTICES ACT (N.R.S. §§ 598.0903 THROUGH 598.0999).....	109
COUNT II: UNCONSCIONABLE ACTS OR PRACTICES BY DEFENDANTS IN VIOLATION OF NEVADA'S DECEPTIVE TRADE PRACTICES ACT (N.R.S. §§ 598.0903 THROUGH 598.0999).....	113
COUNT III: PRODUCT LIABILITY – DESIGN DEFECT.....	115
COUNT IV: PRODUCT LIABILITY – FAILURE TO WARN.....	116
COUNT V: NEGLIGENCE.....	117
COUNT VI: UNJUST ENRICHMENT.....	117
PRAYER FOR RELIEF.....	118

1 Plaintiff, the State of Nevada, by and through Aaron D. Ford, Attorney General, and the
2 undersigned attorneys (the “State”) brings this Complaint against Defendants Meta Platforms,
3 Inc. f/k/a Facebook, Inc. (“Meta”) and its social media platform Instagram,¹ owned and operated
4 by Instagram, LLC (“Instagram”) (collectively, Meta and Instagram are referred to herein as
5 “Defendants”), and alleges, upon information and belief, as follows:

6 INTRODUCTION

7 1. The State of Nevada, by and through Aaron D. Ford, Attorney General for the
8 State of Nevada, and Ernest Figueroa, Consumer Advocate, files this Complaint on behalf of
9 the State to eliminate the hazard to public health and safety caused by Defendants’ social media
10 platform Instagram, and to recover civil penalties and other relief arising out of Defendants’
11 false, deceptive, and unfair marketing and other unlawful conduct arising from the design and
12 implementation of Instagram.

13 2. Meta (formerly Facebook, Inc.) is the parent company of some of the world’s
14 largest social media platforms, including the wildly popular platform Instagram. Worldwide,
15 users number 2.4 billion, meaning that approximately one quarter of the world’s population
16 utilizes this platform every month.² Because of its scale, Instagram is also wildly remunerative,
17 with Defendants generating billions of dollars in revenue from facilitating targeted advertising.

18 3. However, this revenue is only available as long as there is an audience on
19 Instagram to view those highly-targeted advertisements. Thus, Meta is incentivized to keep as
20 many of its users on the platform for as long as possible. But Meta has crossed a line from
21 simply enticing its audience to taking steps to keep its audience *addicted* to the platform.
22 Highly-skilled and highly-paid employees have invested years of research and analysis into
23 designing and deploying features on Instagram that make it impossible not just to quit using the
24

25 ¹ In general, the term “social media platform” refers to a website and/or app (often operating in
26 conjunction, under the same name) that allows people to create, share, and exchange content
27 (such as posts of text, photos, videos, etc.) with other users of the platform. Examples of popular
28 social media platforms include Facebook, Instagram, Messenger, Snapchat, and TikTok.

² <https://www.sec.gov/Archives/edgar/data/1326801/000132680122000018/fb-20211231.htm>
(last visited Jan. 27, 2024).

1 app, but simply to put our phones down to attend to the most basic functions of our daily lives.
2 It demands our attention first thing in the morning and last thing at night, at the dinner table,
3 while we're walking down the street, even when we are driving.

4 4. This addiction to social media—and its consequences—is increasingly being
5 called out by stakeholders and advocates. One of the most succinct critiques can be found in the
6 documentary film, *The Social Dilemma*, which addresses our addiction to posts, likes, pokes,
7 chats, and all of the other prompts that Big Tech³ has deployed to keep us addicted to their apps.
8 As an interviewee in the film notes: “***There are only two industries that call their customers***
9 ***‘users’: illegal drugs and software.***”⁴

10 5. And, much like an illegal drug, Instagram has been designed to be an addiction
11 machine, targeting people under the age of 18 (“Young Users”) and more insidiously children
12 under the age of 13 (“Youngest Users”) who, as Meta well knows, have developmentally limited
13 capacity for self-control. Children are the most vulnerable to these intentionally addictive
14 design elements. As one specialist in social media addiction notes, “[a]dolescence is second
15 only to infancy when it comes to growth. Therefore, the impact of social media on a developing
16 teen’s mind and body can be huge.”⁵ Social media platforms like Instagram, with design
17 elements that intentionally keep children engaged for as long as possible—to the exclusion of
18 all other activities—harm their users emotionally, developmentally, and physically. They lead
19 to a condition known as “problematic internet use,”⁶ which is associated with a range of harms,

21 ³ “Big Tech” is a term commonly used to describe the largest global technology corporations—
22 most typically, this group includes Meta, Alphabet (Google), Amazon, Apple, and Microsoft.
23 However, more broadly, the term refers to the amalgam of large technology companies that
create and maintain technologies and platforms that are intertwined with our daily lives.

24 ⁴ *The Social Dilemma*. Directed by Jeff Orlowski-Yang; Produced by Exposure Labs, Argent
Pictures, The Space Program; 2020. *Netflix*, <https://www.netflix.com/watch/81254224> (last
25 visited Jan. 27, 2024).

26 ⁵ <https://www.newportacademy.com/resources/mental-health/teens-social-media-addiction/>
(last visited Jan. 27, 2024).

27 ⁶ Wen Li, et al., *Diagnostic Criteria for Problematic Internet Use among U.S. University*
28 *Students: A Mixed-Methods Evaluation*, PLOS ONE (Jan. 11, 2016),

1 including but not limited to exposure to predators and online bullies, age-inappropriate content,
2 damage to children’s self-esteem, and increased risk of eating disorders and even suicide.

3 6. As the U.S. Surgeon General recently explained, children’s and parents’
4 attempts to resist social media is an unfair fight: “You have some of the best designers and
5 product developers in the world who have designed these products to make sure people are
6 maximizing the amount of time they spend on these platforms. And if we tell a child, use the
7 force of your willpower to control how much time you’re spending, you’re pitting a child
8 against the world’s greatest product designers.”⁷

9 7. Unlike other consumer products that have appealed to children for generations—
10 like candy or soda—with social media platforms there is no natural break point where the
11 consumer has finished the unit of consumption. Instead, social media platforms are a bottomless
12 pit where users can spend an infinite amount of their time. And Meta profits from each
13 additional second a user spends on its platforms.

14 8. Meta has designed Instagram to exploit that dynamic by embedding within the
15 platform an array of design features that maximize youth engagement, peppering them with
16 reminders to “log on” and making it psychologically difficult to “log off.” Specifically,
17 Defendants rely on design elements to make Instagram addictive to all users, and to Young
18 Users in particular (“Design Elements”). These Design Elements—Low-Friction Variable
19 Rewards; Social Manipulation; Ephemeral Content; Push Notifications; and Harmful Filters
20 (each defined below)—each serve as an obstacle to Young User’s free decision-making.

21 9. Instagram’s design and platform features have fueled the explosive increase in
22 the amount of time that Young Users spend on these platforms. As [REDACTED]
23 [REDACTED]—and as anyone who has recently spent time with adolescents can attest—Meta has
24 successfully induced Young Users to spend vast amounts of time on its social media platforms.

25

26 <https://journals.plos.org/plosone/article?id=10.1371/journal.pone.0145981> (last visited Jan. 27,
2024).

27 ⁷ Allison Gordon & Pamela Brown, *Surgeon General says 13 is ‘too early’ to join social media*,
28 CNN (Jan. 29, 2023), <https://www.cnn.com/2023/01/29/health/surgeon-general-social-media/index.html> (last visited Jan. 27, 2024).

1 Indeed, for many Young Users, social media platforms are viewed as an indispensable part of
2 their identity, a forum to share a carefully cultivated personality “highlight reel,” and a place
3 where they must constantly be “present”—whether they want to be or not.

4 10. All the while, Meta understands that Young Users’ time spent on its social media
5 platforms is not the product of free choice. As [REDACTED]
6 [REDACTED]—Young Users feel
7 addicted to these platforms. They widely report difficulty controlling their time spent on the
8 applications (also referred to as “app” or “apps”). And they frequently express that they would
9 prefer to spend meaningfully less time on social media platforms but feel powerless to do so.
10 Still, Meta has not introduced any product changes to meaningfully reduce its platforms’
11 addictiveness.

12 11. The widespread compulsive use that Meta induced—and allowed to continue
13 unabated—has come at a massive societal cost. In effect, Meta is conducting a potentially
14 society-altering experiment on a generation of Young Users’ developing brains.⁸ While this
15 experiment’s full impact may not be realized for decades, the early returns are alarming.

16 12. Researchers warn that compulsive use of social media platforms impose a wide
17 range of harms, including increased levels of depression, anxiety, and attention deficit
18 disorders; altered psychological and neurological development; and reduced sleep, to name a
19 few. And that is to say nothing of the immense opportunity cost imposed when youth spend
20 critical years glued to social media platforms, not engaged in the varied and profound
21 experiences associated with growing up in the physical world.

22
23
24 ⁸ At least one recent study involving children’s use of Facebook, Instagram, and Snapchat
25 “suggests that social media behaviors in early adolescence may be associated with changes in
26 adolescents’ neural development, specifically neural sensitivity to potential social feedback.”
27 Maria T. Maza, Kara A. Fox, Seh-Joo Kwon, et al., Association of Habitual Checking Behaviors
28 on Social Media With Longitudinal Functional Brain Development, JAMA Pediatr. (Jan. 3,
2023), <https://jamanetwork.com/journals/jamapediatrics/article-abstract/2799812> (last visited
Jan. 27, 2024). These changes in adolescents’ neural development may permanently alter their
brains with unknown long-term impacts. *Id.*

1 13. In short, Meta’s business strategy that purposefully addicts Young Users to its
2 social media platforms has caused widespread and significant injury to Nevadans, and young
3 Nevadans in particular.

4 14. Meta also deceived and continues to deceive Nevada consumers—and, critically,
5 parents—on a large scale. Here, Meta misled consumers, parents, and guardians by concealing
6 the various and significant risks social media platforms present to its users, particularly Young
7 Users. Meta further made multiple, affirmative misrepresentations and engaged in material
8 omissions regarding the safety of its platforms, to the detriment of Nevadans.

9 15. First, Meta has long known that Instagram was harmful for users, and especially
10 ruinous for young women. But Meta did not share that materially important information with
11 consumers using their products. Instead, Meta’s

12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]

16 16. In one particularly distressing episode, Zuckerberg
17 [REDACTED]
18 [REDACTED]
19 [REDACTED]
20 [REDACTED] harmful effects of this platform feature.

21 17. Second, Meta publicizes its “Community Standards Enforcement Reports,” or
22 CSER, to create the façade that its social media platforms are a safe platform where harmful
23 content was rarely encountered. Specifically, these reports touted the low “prevalence” of
24 Community Standards violations, which the Company used as evidence that its platforms are
25 safe. But that is a false narrative that misleads consumers about the true extent of harmful
26 experiences on Instagram.

27 18. To illustrate, in the third quarter 2021 Community Standards Enforcement
28 Report, Meta showcased the low “prevalence” of violating content, estimating for example that

1 “between 0.05% to 0.06% of views were of content that violated our standards against bullying
2 & harassment [on Instagram].” That creates the impression that bullying and harassing content
3 is extremely rare on Instagram—5 or 6 in 10,000 pieces of content.

4 In reality, [REDACTED]
5 [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED]
10 [REDACTED]
11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]

18 20. While reasonable consumers could not have understood the difference between
19 Meta’s reported “prevalence” metrics and the actual incidence of harm on Instagram, Meta’s
20 [REDACTED]
21 [REDACTED]
22 [REDACTED] continues to issue misleading reports
23 to this day.

24 21. The State obtained testimony from the [REDACTED]
25 [REDACTED]
26 [REDACTED]
27
28

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED] minimized or downplayed the harms users were experiencing on Meta's
5 platforms, he testified:

6 [REDACTED]
7 [REDACTED]
8 22. Third, Meta misled the public through false, affirmative statements about its
9 commitment to well-being related products and features. As one example, it long touted its
10 [REDACTED]
11 [REDACTED] as a demonstration of Meta's commitment to well-being. But when Meta learned that its
12 [REDACTED]
13 preferring to mislead its users (and parents) than suffer a public-relations hit for rolling back or
14 fixing a purported "wellness" feature.

15 23. Fourth, Meta made material misrepresentations to develop trust among
16 consumers, parents, and guardians that its social media platforms are a safe place for Young
17 Users. In various public channels, Meta deceptively represented (1) that it does not prioritize
18 increasing users' time on its platforms; (2) that it protects Young Users from harmful or
19 inappropriate content on its platforms; (3) that it does not place a monetary value on Young
20 Users' use of Meta platforms; (4) that it has not changed its internal data and research access
21 policies in response to The Wall Street Journal's 2021 coverage of its internal research findings;
22 and (5) that its platforms are not addictive.

23 24. In sum, through its acts, omissions, and statements, Meta carefully created the
24 impression that its social media platforms were and *are still* a safe platform where users were
25 unlikely to experience significant harm and where users' mental health was an important
26 Company priority. That representation was material, false, and misleading.

26. The State brings this action exclusively under the laws of the State of Nevada. No federal claims are being asserted, and to the extent that any claim or factual assertion set forth herein may be construed to have stated any claim for relief arising under federal law, such claim is expressly and undeniably disavowed and disclaimed by the State.

27. Nor does the State bring this action on behalf of a class or any group of persons that can be construed as a class. The claims asserted herein are brought solely by the State and are wholly independent of any claims that individual Nevadans may have against Defendants. The Attorney General is authorized to bring an action—independently in the name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in Nevada—to remedy violations of Nevada law.

28. The State of Nevada is a body politic created by the Constitution and laws of the State; as such, it is not a citizen of any state. This action is brought by the State in its sovereign capacity in order to protect the interests of the State of Nevada and its residents and as *parens patriae*, by and through Aaron D. Ford, the Attorney General of the State of Nevada. Attorney General Ford is acting pursuant to his authority under, *inter alia*, NRS 228.310, 338.380, 228.390, and 598.0963(3).

29. Meta Platforms, Inc. (“Meta”) is a Delaware corporation with a principal place of business in Menlo Park, California. From 2005 until October 28, 2021, Meta was known as Facebook, Inc. Meta is a multinational technology company that designs, distributes, and promotes multiple social media platforms, including Instagram.

30. Instagram, LLC (“Instagram”), is a Delaware corporation with a principal place of business in Menlo Park, California. Instagram is a subsidiary of Meta that is wholly owned and controlled by its parent. To the extent the allegations in this complaint against Meta relate

1 to the Instagram product specifically, Plaintiff realleges them in full against Instagram LLC as
2 well.

3 31. All of the allegations described in this Complaint were part of, and in furtherance
4 of, the unlawful conduct alleged herein, and were authorized, ordered and/or done by
5 Defendants' officers, agents, employees, or other representatives while actively engaged in the
6 management of Defendants' affairs within the course and scope of their duties and employment,
7 and/or with Defendants' actual, apparent and/or ostensible authority.

8 JURISDICTION AND VENUE

9 32. Subject matter jurisdiction for this case is conferred upon this Court pursuant to,
10 inter alia, Article 6, Section 6 of the Nevada Constitution.

11 33. This Court has personal jurisdiction over Defendants because Defendants do
12 business in Nevada and/or have the requisite minimum contacts with Nevada necessary to
13 constitutionally permit the Court to exercise jurisdiction with such jurisdiction also within the
14 contemplation of the Nevada "long arm" statute, NRS § 14.065. More specifically, and set forth
15 in greater detail, *infra*, Meta enriches itself by selling advertisements targeted to Nevada.
16 According to Meta's public advertising library, Meta regularly sells advertisements specific to
17 Nevada, and it allows businesses to target specific cities in Nevada.¹⁰ All manner of Nevada
18 entities advertise on Instagram to reach a Nevada audience and expand their business in Nevada.

19 34. The instant Complaint does not confer diversity jurisdiction upon the federal
20 courts pursuant to 28 USC § 1332, as the State is not a citizen of any state and this action is not
21 subject to the jurisdiction of the Class Action Fairness Act of 2005.¹¹ Likewise, federal question
22 subject matter jurisdiction pursuant to 28 USC § 1331 is not invoked by the Complaint, as it
23 sets forth herein exclusively viable state law claims against Defendants. Nowhere herein does
24 Plaintiff plead, expressly or implicitly, any cause of action or request any remedy that arises

25 ¹⁰ <https://www.facebook.com/business/help/1501907550136620> (last visited Jan. 27, 2024).

26 ¹¹ *See, e.g., Postal Tel Cable Co. v. Alabama*, 155 U.S. 482, 487, 15 S.Ct. 192, 194, 39 L.Ed.
27 231 (1894) ("A State is not a citizen. And, under the Judiciary Acts of the United States, it
28 is well settled that a suit between a State and a citizen or a corporation of another State is not
between citizens of different States....").

1 under federal law. The issues presented in the allegations of this Complaint do not implicate
2 any substantial federal issues and do not turn on the necessary interpretation of federal law. No
3 federal issue is important to the federal system as a whole under the criteria set by the Supreme
4 Court in *Gunn v. Minton*, 568 U.S. 251 (2013) (e.g., federal tax collection seizures, federal
5 government bonds). Specifically, the causes of action asserted, and the remedies sought herein,
6 are founded upon the positive statutory, common, and decisional laws of Nevada. Further, the
7 assertion of federal jurisdiction over the claims made herein would improperly disturb the
8 congressionally approved balance of federal and state responsibilities. Accordingly, any
9 exercise of federal jurisdiction is without basis in law or fact.

10 35. In this Complaint, to the extent Plaintiff cites federal statutes and regulations.
11 Plaintiff does so to state the duty owed under Nevada law, not to allege an independent federal
12 cause of action and not to allege any substantial federal question under *Gunn v. Minton*. “A
13 claim for negligence in Nevada requires that the plaintiff satisfy four elements: (1) an existing
14 duty of care, (2) breach, (3) legal causation, and (4) damages.” *Turner v. Mandalay Sports*
15 *Entertainment, LLC*, 124 Nev. 213, 180 P.3d 1172 (2008). The element of duty is to be
16 determined as a matter of law based on foreseeability of the injury. *Estate of Smith ex rel. Smith*
17 *v. Mahoney’s Silver Nugget, Inc.*, 127 Nev. 855, 265 P.3d 688, 689 (2011).

18 36. To be clear, to the extent Plaintiff cites federal statutes and federal regulations,
19 it is for the sole purpose of stating the duty owed under Nevada law to the residents of Nevada.
20 Thus, any attempted removal of this complaint based on a federal cause of action or substantial
21 federal question is without merit.

22 37. Venue is proper in this Court pursuant to NRS § 598.0989(3) because
23 Defendants’ conduct alleged herein took place in Clark County, Nevada.

24 FACTS

25 I. INSTAGRAM, GENERALLY.

26 38. Instagram is a photo-, video-, and text-sharing social networking service. Users
27 engage with it either via its website or its free-standing app, which users download to their
28 smartphone or other mobile device. Instagram allows users to post content that can be edited

(including with filters for visual posts like photo and video) and organized by hashtags and geographical tagging. Users can browse other users' posts by tag or location, view trending content, like posts, and follow other users to add their content to a personal feed.



Fig. 1¹²

39. As noted above, Instagram attracts billions of monthly active users worldwide, and roughly 160 million users in the United States.¹³ In 2021, 57% of surveyed American

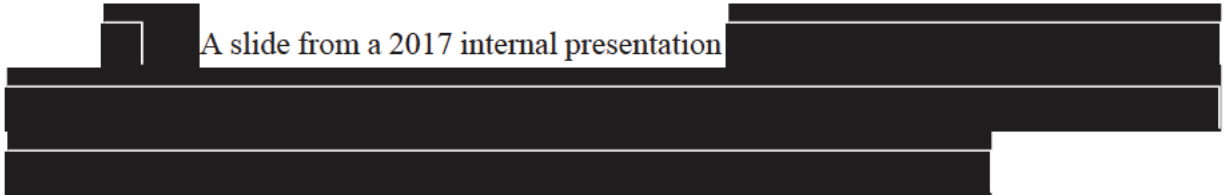
¹² Jon Fingas, *Instagram is making its TikTok-like 'Reels' easier to find*, Engadget (June 24, 2020), <https://www.engadget.com/instagram-reels-expansion-000141339.html>) (last visited Jan. 27, 2024).

¹³ <https://www.sec.gov/Archives/edgar/data/1326801/000132680122000018/fb-20211231.htm> (last visited Jan. 27, 2024).

1 children ages 12–17 said they used Instagram every week,¹⁴ while 62% of teens ages 13-17
2 reported using Instagram, with 10% of teens reporting almost constant use.¹⁵

3 40. Instagram is a critical social media platform for young people. It has been
4 described by the Wall Street Journal as “the online equivalent of the high-school cafeteria: a
5 place for teens to post their best photos, find friends, size each other up, brag and bully.”¹⁶

6 A slide from a 2017 internal presentation



23 ¹⁴ <https://www.statista.com/statistics/578364/countries-with-most-instagram-users/> (last visited
24 Jan. 27, 2024).

25 ¹⁵ Salvador Rodriguez, *TikTok usage surpassed Instagram this year among kids aged 12 to 17*,
26 *Forrester survey says*, CNBC (Nov. 18, 2021, 5:51 PM EST),
27 <https://www.cnb.com/2021/11/18/tiktok-usage-topped-instagram-in-2021-among-kids-12-to-17-forrester-.html#:~:text=This%20year%2C%2063%25%20of%20Americans,survey%20the%20research%20firm%20conducted> (last visited Jan. 27, 2024)

28 ¹⁶ <https://www.wsj.com/articles/facebook-knows-instagram-is-toxic-for-teen-girls-company-documents-show-11631620739> (last visited Jan. 27, 2024).

A. Meta Offers Its Platforms in Exchange for Consumers’ Valuable Consideration that Enables Meta to Sell Advertising.

42. Like all social media platforms, Instagram does not charge money from its users for access. Instead, it monitors its users and surreptitiously collects data related to their online lives—including the way in which they use the product, the posts with which they interact, the friends they have, the places they go, the advertisements they view, and even what users do on other sites or apps. Defendants are consistently the target of regulatory actions, lawsuits, and news reports related to the vast troves of personal data they acquire on individuals, which they use (and misuse) to create detailed, individual profiles that in turn are employed to serve users targeted advertising.

43. As Zuckerberg has explained, “based on what pages people like, what they click on, and other signals, we create categories...and then charge advertisers to show ads to that category. Although advertising to specific groups existed well before the internet, online advertising allows much more precise targeting and therefore more-relevant ads.”¹⁷

44. The practical effect of this arrangement—free access to the Instagram platform in exchange for personal data—is best expressed in the documentary *The Social Dilemma*, which quotes Google’s former design ethicist, Tristan Harris: “if you’re not paying for the product, then you are the product.”¹⁸

45. Because Meta views its users as its product, and because it can best monetize and collect information about its users while they are on its various platforms (including Instagram), Meta is incentivized to keep its users on the platforms as long as possible, and as often as possible. Via his current project, The Center for Humane Technology, Tristan Harris further explains this concept:

¹⁷ Understanding Facebook’s Business Model, Mark Zuckerberg, January 24, 2019, <https://about.fb.com/news/2019/01/understanding-facebooks-business-model/> (last visited Jan. 27, 2024).

¹⁸ Abigail McCormick, *Review: The Social Dilemma* (Aug. 8, 2021), <https://sauconpanther.org/2535/arts-and-entertainment/if-youre-not-paying-for-the-product-then-you-are-the-product/> (last visited Jan. 27, 2024).

1 Our attention is a limited resource. There are only so many waking hours in the
2 day, and therefore only so many things we can focus on. When we pay attention
to one thing, we're not paying attention to something else.

3 This fact of life has been deeply complicated by technology. With more
4 information and more choices at our fingertips than ever before, there are
unprecedented demands on our attention.

5 This feeling of constant distraction is fueled by tech companies that rely on
6 capturing your attention to make money, normally by selling it to advertisers.

7 ...

8 Each app is caught in a race for your attention, competing not just against other
9 apps, but also against your friends, your family, your hobbies, and even your
sleep.

10 ...

11 *[S]ocial media companies don't sell software, they sell influence. They collect*
12 *in-depth data about how to influence your decisions, then sell that influence to*
13 *the highest bidder. The more time they can get you to spend scrolling and*
14 *clicking, the more data they can collect and the more ads they can sell.*¹⁹

15 46. Defendants acknowledge this fact in their most recent Form 10-K, warning that
16 decreased use of the Facebook platform—resulting in fewer opportunities to profile users and
17 serve targeted advertising—is fatal to its business model: “The size of our user base and our
18 users’ level of engagement across our products are critical to our success. Our financial
19 performance has been and will continue to be significantly determined by our success in adding,
20 retaining, and engaging active users of our products that deliver ad impressions, particularly
21 for...Instagram”²⁰ Further, Defendants acknowledge that “advertising revenue can also be
22 adversely affected by,” *inter alia*, “decreases in user engagement, including time spent on our
products” and “our inability to continue to increase user access to and engagement with our
products.”²¹

23
24 ¹⁹ Center for Humane Technology, *The Attention Economy – Why do tech companies fight for*
25 *our attention?* (Aug. 17, 2021), <https://www.humanetech.com/youth/the-attention-economy>
(last visited Jan. 27, 2024).

26 ²⁰ <https://www.sec.gov/Archives/edgar/data/1326801/000132680122000018/fb-20211231.htm>
27 (last visited Jan. 27, 2024).

28 ²¹ *Id.*

47. Competition for users' attention is fierce, and social media platforms—like Defendants—are purposely designed to addict their users. Defendants have both in-house and external research initiatives designed to document and improve engagement reporting and have projects that use neuromarketing and virtual reality techniques to measure effectiveness.²² The mobilization of all these resources indicates that Instagram platforms is built not for user experience, but for maximization of profit.

48. And this maximization of profit is achieved through addiction. As set forth below, Defendants employ sophisticated principles first identified by psychologists and other academics, which they manifest through intentional design elements that exploit those psychological principles.

49. These design elements are not subjective—instead they are part and parcel of Instagram's code. They operate consistently, and universally, across the platform, for all users, including the vulnerable children who Defendants know—to a certainty—are using Instagram.

50. Worse still, Defendants'

and continues to add features to keep children hooked.

B. Account Creation for Instagram.

51. To fully access Instagram, consumers must create an account. As part of the account-creation process, consumers enter into a contract with Meta. By entering into these contracts, users agree to comply with Instagram's Terms of Use.²³

52. As noted above, although users can establish accounts on Instagram without paying a fee, Defendants do not provide their products for free—rather, they charge users by collecting their data and time, which Meta then converts into advertising dollars.

²² See, e.g., Meta Careers, *Shape the Future of Marketing with the Marketing Science Team*, Meta (Sept. 19, 2018), <https://www.metacareers.com/life/come-build-with-the-facebook-marketing-science-team/> (last visited Jan. 27, 2024); *How Virtual Reality Facilitates Social Connection*, Meta, <https://www.facebook.com/business/news/insights/how-virtual-reality-facilitates-social-connection> (last visited Jan. 27, 2024).

²³ Facebook Terms of Service, <https://www.facebook.com/legal/terms> (last visited Jan. 27, 2024).

1 53. In exchange for the right to use Instagram, consumers agree to a host of terms
2 that power Meta’s advertising business. For example, this is confirmed by Instagram’s Terms
3 of Use:

4 We agree to provide you with the Instagram Service. . . . Instead of paying to
5 use Instagram, by using the Service covered by these Terms, you acknowledge
6 that we can show you ads that businesses and organizations pay us to promote
7 on and off the Meta Company Products. We use your personal data, such as
information about your activity and interests, to show you ads that are more
relevant to you.²⁴

8 54. Consumers also pay for Instagram by agreeing to give Meta access to vast reams
9 of data arising out of their platform use. Under Instagram’s Terms, consumers “must agree to
10 [Meta’s] Privacy Policy to use Instagram.” And pursuant to that Policy, each consumer must
11 agree that Meta may collect a host of data, ranging from information about the consumer’s
12 activity on Instagram (such as the content they like and accounts they follow); the messages the
13 consumer sends and receives; the content the consumer provides through Instagram’s camera
14 feature and the consumer’s camera roll; the ways the consumer interacts with ads, the time the
15 user spends interacting with various pieces of content; the hardware and software the consumer
16 is using, the GPS, Bluetooth signals, nearby Wi-Fi access points, beacons and cell towers; and
17 many other categories of data.

18 55. Meta also represents itself as a common enterprise. Meta’s financial disclosures
19 describe Instagram, Facebook, Messenger, and WhatsApp, as Meta’s “‘family’ of products,”
20 and report revenue and expenses for the entire “family” together.²⁵ Instagram’s Terms of Use
21 agreement currently identifies “The Instagram Service” as “one of the Meta Products, provided
22 to you by Meta Platforms, Inc.”²⁶ Meta’s supplemental terms for its “Meta Platforms
23 Technologies Products” is similarly styled as an agreement between Meta Platforms, Inc. and
24

25 ²⁴ *Id.*

26 ²⁵ Meta Platforms, Inc. Form 10-Q, 1, 4, 33, (Q2 2023), <https://archive.ph/MSvSt> (last visited
27 Jan. 27, 2024).

28 ²⁶ <https://help.instagram.com/581066165581870> (last visited Jan. 27, 2024).

1 the user.²⁷ Meta Platforms Technologies Products are defined to include its VR-related
2 products, such as its Meta Quest and Oculus virtual reality headsets, and Meta Horizon Worlds,
3 its virtual reality social media platform.²⁸ Meta Platforms also reports its revenue from its VR
4 business segment in its financial disclosures.²⁹

5 56. Consumers' payment in the form of time, attention, and data enables Meta to sell
6 highly targeted, data-informed advertising opportunities, which is the foundation of Meta's
7 business.

8
9 **C. Meta Prioritizes Acquiring Young Users and Maximizing Their Time Spent
on its Platforms.**

10 57. In Meta's business model, not all consumers are created equal. Young Users are
11 Meta's prized demographic.

12 58. Accordingly, Meta has pursued increasing Young Users' time spent on its
13 platforms as one of the Company's most important goals.

14 59. For instance, as of November [REDACTED]
15 [REDACTED]
16 [REDACTED]³⁰

17 60. This strategy was [REDACTED]
18 [REDACTED]³¹

19 61. As Meta knows, Instagram is [REDACTED]
20 [REDACTED]

21 Indeed, following the success of Facebook, Meta
22 expanded considerably through a series of acquisitions. On April 9, 2012, Meta purchased

23 ²⁷ Supplemental Meta Platforms Technologies Terms of Service, <https://www.meta.com/legal/supplemental-terms-of-service> (last visited Jan. 27, 2024).

24 ²⁸ Meta Platforms Technologies Products Definition, <https://www.meta.com/legal/meta-platforms-technologies-products> (last visited Jan. 27, 2024).

25 ²⁹ Meta Platforms, Inc. Form 10-Q, 31, (Q1 2023), <https://archive.ph/T6xDK> (last visited Jan.
26 27, 2024).

27 ³⁰ [REDACTED]

28 ³¹ [REDACTED]

1 Instagram, in part because it believed that Instagram was a potential competitor and a threat to
2 Meta's market share.³² More importantly, Instagram was most popular among [REDACTED]

3 [REDACTED]
4 [REDACTED]³³

5 62. Meta's internal studies show [REDACTED]

6 [REDACTED] As Meta's internal research shows,
7 [REDACTED]
8 [REDACTED]

9 63. Even more fundamentally, Meta pursues Young Users because Meta's
10 advertising customers value that audience. Among other reasons, Meta's advertising partners
11 want to reach Young Users because they: (1) are more likely to be influenced by advertisements,
12 (2) may become lifelong customers, and (3) set trends that the rest of society emulates.

13 64. Advertisers pay Meta a premium to serve advertisements to Young Users. And
14 many advertisers are willing to pay Meta for the opportunity to reach Young Users in specific
15 geographic markets, such as those in Nevada.

16 65. Meta is motivated to increase Young Users' time spent on its platforms not only
17 because it is a meaningful stream of advertising business, but also, because the data that Meta
18 collects from that use is itself highly valuable to the Company.

19 66. Meta has worked to maximize Young Users' [REDACTED]
20 [REDACTED]
21 [REDACTED]

22 [REDACTED] Meta does this both because Young Users are a prized demographic, and because loss
23 of Young Users on its platform threatens Meta's bottom line. As noted in the company's most
24 recent Form 10-K filing:
25 [REDACTED]

26 ³² House Judiciary Committee documents (Mark Zuckerberg emails to David Ebersman
February 28, 2012 and to unknown recipient April 9, 2012, 2012).

27 ³³ [REDACTED].

28 ³⁴ [REDACTED]

We believe that some users, particularly younger users, are aware of and actively engaging with other products and services similar to, or as a substitute for, our products and services, and we believe that some users have reduced their use of and engagement with our products and services in favor of these other products and services. In the event that users increasingly engage with other products and services, we may experience a decline in use and engagement in key user demographics or more broadly, in which case our business would likely be harmed.³⁵

67. In short, Meta has many strong short-term and long-term financial incentives to increase the time that Young Users spend on its platforms, including Instagram. And as described in further detail below, Meta has chased that goal with incredible success, capturing a mind-boggling amount of time and attention from a generation of Young Users.

68. This approach has been profitable. Meta reported earning \$116.6 billion in revenue in 2022, with \$23.2 billion in net income, making Meta one of the largest companies in the United States by revenue and income.

69. A significant portion of these earnings come from the Young Users on Meta's platforms. A recent study estimated the revenue derived from Young Users across the world's largest social media platforms, including Facebook, and concluded that there were roughly 16,700,000 U.S.-based Young Users (ages 0-17 years) on the platform as of 2022.³⁶ Almost \$5 billion in Instagram's ad revenue came from that cohort in the same year.³⁷ Upon information and belief, a portion of these income-generating Young Users reside in Nevada.

70. And because of his ownership stake in Meta, Zuckerberg is one of the wealthiest people in the world. In addition to financial success, Zuckerberg's role as Meta's CEO and Founder has made him a public figure able to exert significant influence not only over the Company, but also over society at large. In a private email exchange with [REDACTED]

³⁵ <https://www.sec.gov/Archives/edgar/data/1326801/000132680122000018/fb-20211231.htm> (last visited Jan. 27, 2024).

³⁶ Raffoul A, Ward ZJ, Santoso M, Kavanaugh JR, Austin S Bryn (2023) *Social media platforms generate billions of dollars in revenue from U.S. youth: Findings from a simulated revenue model*. PLoS ONE 18(12): e0295337, <https://doi.org/10.1371/journal.pone.0295337> (last visited Jan. 27, 2024); *id.* at Table 1.

³⁷ *Id.* at Fig. 1.

D. Social Media Use—and Ensuing Exposure to Harms—is Especially Prevalent Among Young Users of Color.

71. Research shows that a higher percentage of children of color in America use social media platforms—including Facebook—than their white counterparts.

72. A recent study by Pew, entitled *Teens, Social Media and Technology 2023*, reveals that Black and Hispanic teenagers between ages 13 and 17 spend more time on social media platforms than their white counterparts.³⁹

73. According to that study, 55% of Hispanic teenagers and 54% of Black teenagers report generally being online “almost constantly,” compared with 38% of their white teenage counterparts.

74. That study indicated that while only 3% of white children between the ages of 13 and 17 report being “almost constantly” on Instagram, the number increases to 15% for Black children and 16% for Hispanic children between the ages of 13 and 17.

75. Another study similarly found that Black and Hispanic children, ages 8 to 12, also use social media platforms more than their white counterparts.⁴⁰

³⁸ [REDACTED]

³⁹ Pew Research Center, *Teens, Social Media and Technology 2023* (Dec. 11, 2023), <https://www.pewresearch.org/internet/2023/12/11/teens-social-media-and-technology-2023/> (last visited Jan. 27, 2024).

⁴⁰ Rideout, V., Peebles, A., Mann, S., & Robb, M. B. (2022), *The Common Sense Census: Media Use by Tweens and Teens, 2021*, https://www.common sense media.org/sites/default/files/research/report/8-18-census-integrated-report-final-web_0.pdf (last visited Jan. 27, 2024).

1 76. Researchers have found that due to lower income levels, Black and Hispanic
2 teenagers are less likely to have broadband access or computers at home, causing
3 disproportionate reliance on smartphones and corresponding use of social media platforms.

4 77. Thus, while 95% of children between the ages of 13 and 17 have access to a
5 smartphone at home, having access to a home computer remains less common for those in
6 lower-income households.

7 78. Experts believe that internet usage among teenagers may be displacing other
8 activities, including sports participation, in-person socializing, and reading, among other things.

9 79. With respect to reading, the 2023 *Scholastic Kids & Family Reading Report*
10 found that the average amount of reading across all racial groups is in decline and continues to
11 trend downward as children transition to their teenage years.⁴¹

12 80. The *Scholastic* study found that while 46% of kids between the ages of 6 and 8
13 report reading for pleasure, only 18% of children between the ages of 12 and 17 report the same.

14 81. These statistics raise the concern that the disparities in internet and social media
15 platforms use may, in turn, intensify overall declines and existing differences in reading across
16 racial groups.

17 82. But more broadly,

[REDACTED]

24
25
26
27 ⁴¹ Scholastic, *Kids & Family Reading Report*TM, <https://www.scholastic.com/content/corp-home/kids-and-family-reading-report/reading-lives.html> (last visited Jan. 27, 2024).
28

Meta has never shared this materially significant information with the public or with consumers of its products.

83. As of the 2020 Census, Nevada's Black community constitutes roughly 12.1% of the State's population, and the Hispanic community constitutes 28.7% of the State's population.⁴³

E. Meta Directs Its Business Towards Nevada.

84. Notably, Meta allows advertisers to target Young Users based on their age and location,⁴⁴ and Instagram is massively popular among Young Users in Nevada.

85. According to Meta's internal metrics,

86. Between

48

87. Meta is able to achieve this level of engagement in Nevada at least in part because it consciously directed its business into Nevada in several ways. As part of that effort, Meta took—and continues to take—steps to enhance its brand in Nevada.

88. For example,

⁴² [REDACTED]

⁴³ <https://www.census.gov/library/stories/state-by-state/nevada-population-change-between-census-decade.html> (last visited Jan. 27, 2024).

⁴⁴ [REDACTED]

⁴⁶ *Id.*

⁴⁷ [REDACTED]

⁴⁸ *Id.*

⁴⁹ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

89. Perhaps most strikingly, Meta's internal

90. In addition to studying

91. And of course, Meta enriched itself by selling advertisements targeted to Nevada, including advertising campaigns for teen-oriented products and services. According to Meta's public advertising library, Meta regularly sells advertisements specific to Nevada, and it allows businesses to target specific cities in Nevada.⁶⁰ All manner of Nevada entities

⁵⁰ *Id.*

⁵¹ *Id.*

⁵² *Id.*

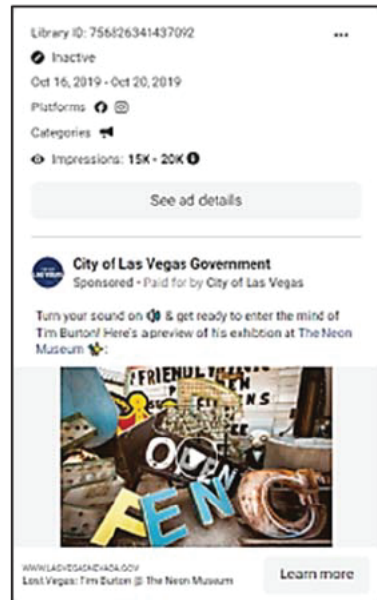
⁵³ *Id.*

⁵⁴ *Id.*

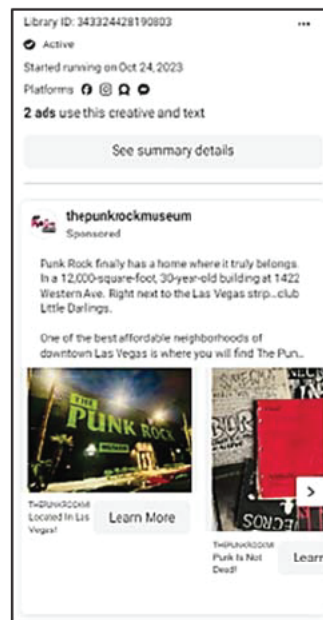
⁵⁵

⁶⁰ <https://www.facebook.com/business/help/1501907550136620> (last visited Jan. 27, 2024).

advertise on Instagram to reach a Nevada audience and expand their business in Nevada. Some examples include:⁶¹

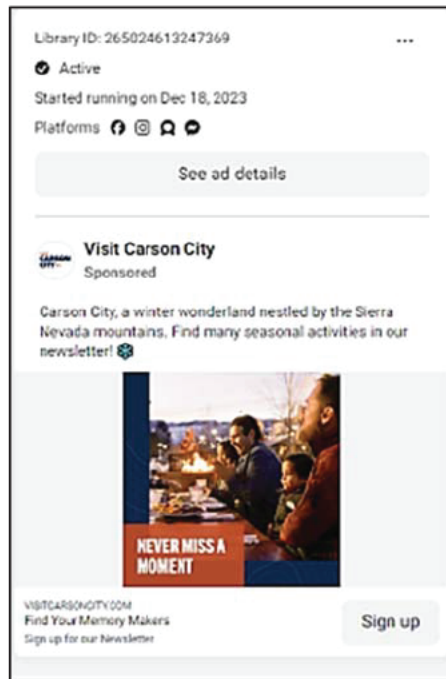


The City of Las Vegas Government

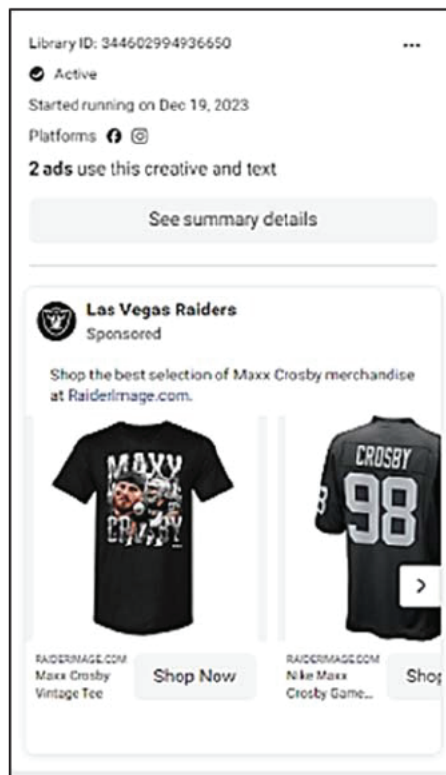


The Punk Rock Museum

⁶¹ Each of the following examples comes from a natural language search of Meta’s “Ad Library” tool, when enables users to “[s]earch all the ads currently running across Meta technologies.” https://www.facebook.com/ads/library/?active_status=all&ad_type=political_and_issue_ads&country=US&media_type=all (last visited Jan. 27, 2024).



Carson City, NV



The Las Vegas Raiders

92. In sum, Meta not only makes its social media platforms available in Nevada, it also—at a minimum—promotes its brand in Nevada, touts its investments in Nevada, [REDACTED], and sells advertisements to Nevada entities so that they can expand their businesses in Nevada. And by virtue of Meta’s business model, Meta has entered into (at least) hundreds of thousands of contracts with consumers in Nevada and sold the opportunity to serve ads specifically to those Nevada consumers.

II. META UTILIZES MULTIPLE DESIGN PRACTICES PURPOSELY INTENDED TO HOOK YOUNG USERS AND KEEP THEM ON ITS PLATFORMS IN PERPETUITY.

A. By Meta’s Design, its Platforms Induce Compulsive Use Among Young Users.

93. For generations, companies have marketed products to Young Users—from bikes to Barbies to baseball cards. Unquestionably, products like those appealed to a young audience, and their creators marketed them accordingly and achieved success.

94. Meta could have followed a similar course. It might have offered a version of its platforms that was simply appealing, but not addictive.

95. Instead, Meta intentionally designed its platforms to exploit known vulnerabilities in Young Users’ neurological development, making its platforms profoundly difficult—and in some cases impossible—for children and teens to resist.

96. As Meta’s founding president, Sean Parker, explained in 2018:

The thought process that went into building these applications, Facebook being the first of them ... was all about: ‘How do we consume as much of your time and conscious attention as possible?’ That means that **we need to sort of give you a little dopamine hit every once in a while**, because someone liked or commented on a photo or a post or whatever. And that’s going to get you to contribute more content and that’s going to get you ... more likes and comments. It’s a social-validation feedback loop ... exactly the kind of thing that a hacker like myself would come up with, **because you’re exploiting a vulnerability in human psychology**. The inventors, creators—me, [Meta founder] Mark [Zuckerberg], [Instagram founder] Kevin Systrom on Instagram, all of these people—**understood this consciously. And we did it anyway.**⁶²

⁶² Alex Hern, ‘Never get high on your own supply’ – why social media bosses don’t use social media, The Guardian (January 23, 2018), <https://www.theguardian.com/media/2018/jan/23/>

1 97. On an ongoing basis, Meta pours massive resources into understanding Young
2 Users' cognitive vulnerabilities.

3 98. For example, in [REDACTED]
4 [REDACTED]
5 [REDACTED] 63

6 99. But that [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED] 65

10 100. On information and belief, [REDACTED]
11 [REDACTED] study Young Users and
12 capture more of their time and attention.

13 **B. Meta Studies** [REDACTED]

14 101. A [REDACTED]
15 [REDACTED]
16 [REDACTED] 66

17 102. [REDACTED]
18 [REDACTED]
19 [REDACTED]

20
21
22
23 [never-get-high-on-your-own-supply-why-social-media-bosses-dont-use-social-media](#) (last
visited Jan. 27, 2024). Emphasis in this Complaint is added unless otherwise noted.

24 63 [REDACTED]

25 64 *Id.*

26 65 *Id.*

27 66 [REDACTED]

28 67 *Id.* (pg. 1)

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]⁶⁸

103. The first section of the [REDACTED]

[REDACTED]⁶⁹

104. As part of the [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]⁷⁰

105. The [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]⁷¹

106. The next [REDACTED]

[REDACTED]⁷²

107. Offering [REDACTED]

[REDACTED]

[REDACTED]⁷³

108. The next [REDACTED]

[REDACTED]⁷⁴

⁶⁸ *Id.* (pg. 6)

⁶⁹ *Id.* (pg. 7)

⁷⁰ *Id.* (pgs. 10-11)

⁷¹ *Id.* (pg. 12)

⁷² *Id.* (pgs. 13-14)

⁷³ *Id.* (pg. 22)

⁷⁴ *Id.* (pg. 23)

1 109. And the following

3 75

4 110. Suggesting another

7 76

8 111. Building

11 77

12 112. In several places, the

14 For example, the

18 But that was

24 ⁷⁵ *Id.* (pg. 24)

25 ⁷⁶ *Id.* (pg. 47)

26 ⁷⁷ *Id.* (pg. 54)

27 ⁷⁸ *Id.* (pg. 48)

27 ⁷⁹ *Id.* (pg. 13)

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED]
5 115. In the end, the [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED] 83
10 116. The [REDACTED]
11 [REDACTED]
12 [REDACTED] 84
13 117. In response to the [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 [REDACTED]
19 118. On information and belief, the [REDACTED]
20 [REDACTED]
21 [REDACTED]

23 ⁸⁰ *Id.* (pg. 24)

24 ⁸¹ *Id.* (pg. 27)

25 ⁸² *Id.* (pgs. 56-57)

26 ⁸³ *Id.* (pg. 58)

27 ⁸⁴ [REDACTED]

28 ⁸⁵ [REDACTED]

⁸⁶ [REDACTED]

C. **Meta Implements Specific Design Elements Into Instagram to Induce Compulsive Use.**

119. Leveraging its [REDACTED]

Young Users’ diminished capacity for self-control through an array of platform features, including the challenged Design Elements.

120. Collectively, these features created and exploited obstacles to Young Users’ free decision-making, causing them to spend more time on Instagram than they otherwise would.

121. Several categories of engagement-optimizing design features are especially pernicious: Low-Friction Variable Rewards; Social Manipulation; Ephemeral Content; Push Notifications; and Harmful Filters. The State discusses each, in turn.

1. **Low-Friction Variable Rewards: Endless Scroll, Autoplay, and Reels**

122. The “Low-Friction Variable Reward” design element (also called the “Hook Model”⁸⁷) is a powerful cognitive manipulation principle, first identified by the psychologist B.F. Skinner in the early 20th Century.⁸⁸ It is premised on the observation that when test subjects—both humans and other animals—are rewarded unpredictably for a given action, they will engage in the action for a longer period of time than if the reward is predictable.⁸⁹ In his testing, Skinner observed that lab mice responded voraciously to random rewards. The mice would press a lever and sometimes they would get a small treat, other times a large treat, and

⁸⁷ Bart Krawczyk, *What is the hook model? How to build habit-forming products*, Log Rocket Frontend Analytics (Dec. 2, 2022), <https://blog.logrocket.com/product-management/what-is-the-hook-model-how-to-build-habit-forming-products/> (last visited Jan. 27, 2024).

⁸⁸ B. F. Skinner, *Two Types of Conditioned Reflex: A Reply to Konorski and Miller*, 16 J. Gen. Psychology, 272-279 (1937), <https://doi.org/10.1080/00221309.1937.9917951> (last visited Jan. 27, 2024).

⁸⁹ Laura MacPherson, *A Deep Dive into Variable Designs and How to Use Them*, DesignLi (Nov. 8, 2018), <https://designli.co/blog/a-deep-dive-on-variable-rewards-and-how-to-use-them/> (last visited Jan. 27, 2024); Mike Brooks, *The “Vegas Effect” of Our Screens*, Psychol. Today (Jan. 4, 2019), <https://www.psychologytoday.com/us/blog/tech-happy-life/201901/the-vegas-effect-our-screens> (last visited Jan. 27, 2024).

1 other times nothing at all. Unlike the mice that received the same treat every time, the mice that
2 received variable rewards seemed to press the lever compulsively.

3 123. At a chemical level, this is because the brain generates more dopamine in
4 response to an uncertain reward than in response to an expected and reliable one.⁹⁰ The
5 tendency of variable rewards to drive compulsive behavior is sometimes referred to as the
6 “Vegas Effect,” and is the primary mechanism at work in slot machines, keeping players sitting
7 in front of machines for hours on end (machines that, due to their limited mental development,
8 Young Users and Youngest Users are of course forbidden from using or interacting with).⁹¹

9 124. Defendants are aware not only of the value of variable rewards for driving users’
10 online time and maximizing profits, but also the risks associated with these types of rewards.

11 For example, [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED] (emphasis added).



Fig. 3

24 ⁹⁰ Anna Hartford & Dan J. Stein, *Attentional Harms and Digital Inequalities*, 9 JMIR Mental
25 Health 2, 3 (Feb. 11, 2022), <https://pubmed.ncbi.nlm.nih.gov/35147504/> (last visited Jan. 27,
26 2024) (“At the level of our neural reward system, an uncertain reward generates a more
significant dopamine response than those generated by a reliable reward.”).

27 ⁹¹ Mike Brooks, *The “Vegas Effect” of Our Screens*, Psychol. Today (Jan. 4, 2019),
28 [https://www.psychologytoday.com/us/blog/tech-happy-life/201901/the-vegas-effect-our-](https://www.psychologytoday.com/us/blog/tech-happy-life/201901/the-vegas-effect-our-screens)
[screens](https://www.psychologytoday.com/us/blog/tech-happy-life/201901/the-vegas-effect-our-screens) (last visited Jan. 27, 2024).

i. Endless Scroll

125. One example of variable rewards design feature is the infinite or endless scroll mechanism with variable content that is deployed across social media platforms. When a platform uses endless scroll, a user is continuously fed more pieces of content, with no endpoint, as they scroll down a feed or page. When platforms load content into streams viewed by endless scroll, a user can never predict what will come next or how interesting it will be. The user is rewarded at unpredictable intervals and levels with pieces of content they find funny, entertaining, or otherwise interesting.⁹²

126. Critically, the action required by the user is “low-friction” – that is to say, there is little commitment required of the user beyond simply scrolling through the app. This enables the user to engage in the pursuit of the next “rewarding” piece of content in perpetuity.

127. Instagram employs the endless scroll, supplying minor users with unpredictable variable rewards by strategically and intermittently surfacing content that the respective platforms predict users will want to see. But Defendants are not just making a “lucky” guess about the type of content that children- and others- would wish to engage. Rather their predictions are incredibly precise and “effective” as they are made because Instagram siphons private and personal user data to create individualized user “profiles”—including of children who uses the apps.

128. A blog post by Adam Mosseri, head of Instagram, explains, “[W]e make a set of predictions. These are educated guesses at how likely you are to interact with a post in different ways . . . [t]he more likely you are to take an action, and the more heavily we weigh that action, the higher up you’ll see the post.”⁹³

⁹² GCFGGlobal.org, *Digital Media Literacy: Why We Can’t Stop Scrolling*, <https://edu.gcfglobal.org/en/digital-media-literacy/why-we-cant-stop-scrolling/1/> (last visited Jan. 27, 2024).

⁹³ <https://about.instagram.com/blog/announcements/instagram-ranking-explained> (last visited Jan. 27, 2024).

ii. Autoplay

129. Another form of navigation manipulation called “Autoplay,” is similar to endless scrolling, and is especially prevalent on social media platforms, like Instagram, that provide video content for users. Simply put, once one video is over, another one begins without any further prompting from the user.

130. Meta deploys the autoplay feature to keep Young Users on Instagram. Much like endless scroll, Stories surface automatically and continuously playing video content in their Feed and elsewhere and encouraging Young Users to remain on the platform *ad infinitum*.

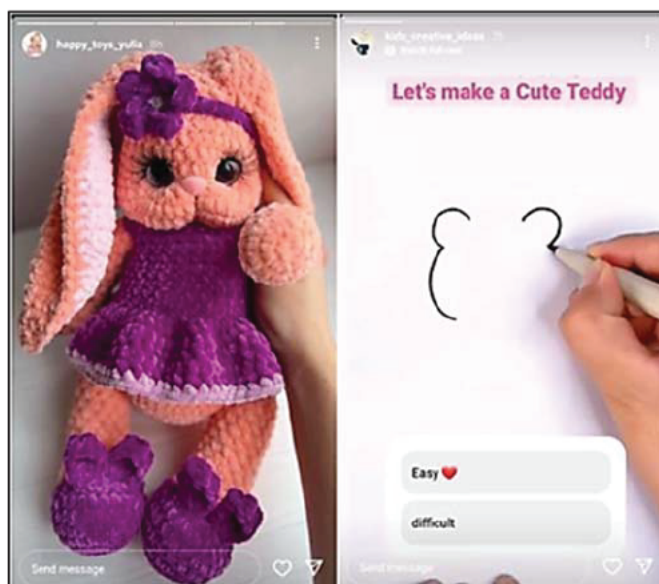


Fig. 4 - When an Instagram user views stories of an account they follow, once the timer bar at the top of the screen becomes opaque, they are automatically presented with either the next story posted by that account, or another account's story reel.

131. AutoPlay takes away a user's sense of control, increasing the chances of binge-watch or going down a “rabbit hole.” Moreover, because there is no longer any user choice in the interaction (Instagram chooses what videos will be played next), there is an increased risk of children being exposed to inappropriate, harmful content.

132. Meta understands that these are powerful tools. Tellingly, when

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]
[REDACTED]
[REDACTED] 94

iii. Reels

133. Meta's popular Reels product has these same characteristics. An internal [REDACTED]
[REDACTED]
[REDACTED] 95

134. Videos on Reels automatically and perpetually play as the user swipes the screen up to the next video. The short-form nature of Reels (between 15 to 90 seconds, as of April 2023) makes it difficult for Young Users to close the app or clock how many videos they have watched or how long they have spent. Other aspects of Reels—including the placement of the like, comment, save, and share buttons on top of the video—reduce or prevent interruption and keep the user constantly viewing the video.

135. Meta's development of these engagement features on its platforms disregarded its own internal research about how design choices cause compulsive use. In June [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] 96

136. Internally, Meta employees recognized that Reels' design was harmful to Young Users. As one employee observed in [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

94 [REDACTED]
95 [REDACTED] (pg. 29)
96 [REDACTED] (pg. 35)
97 [REDACTED]

2. Social Manipulation

137. Defendants utilize social manipulation to keep children addicted to their platforms. At its most basic form, this design practice leverages a child’s desire for social relationships in order to encourage more time spent on the platform and more engagement with the platform (which in turn leads to more opportunities for Defendants to monetize the child users).

138. Children are particularly vulnerable to social manipulation techniques. Younger adolescents have specific developmental needs for social connectedness and are particularly attuned to social validation.⁹⁸ This can “lead to greater relinquishing of security in certain arenas to gain social validation and belonging, for example, disclosing publicly to participate in online communities and accrue large amounts of likes, comments, and followers.”⁹⁹ One pair of researchers investigating the phenomena write:

[T]o tweens and teens, the kind of “rewards” social media promise are even more meaningful. Teens are primed to crave and value social validation, which is part of how they make sense of where they fit into their social worlds. Their biological sensitivity to social feedback makes them more susceptible to the pull of social media, which is at the ready with a promise of 24/7 access to likes and praising comments. Capacities for self-regulation and impulse control are also a work in progress during the teen years, which adds to the challenge of pulling away.¹⁰⁰

139. Many social manipulation design features induce anxiety in children that they or their content may not be as popular as that of their peers. In the words of a Massachusetts high school student who spoke with Common Sense Media, “[I]f you get a lot of likes, then ‘Yay,’ you look relevant, but then if you don’t get a lot of likes and/or views, it can completely crush

⁹⁸ Nicholas D. Santer et al., *Early Adolescents’ Perspectives on Digital Privacy*, Algorithmic Rights and Protections for Children (2021) at 6, 30.

⁹⁹ *Id.* at 6 (citing J.C. Yau & S. M. Reich, “It’s Just a Lot of Work”: Adolescents’ Self-Presentation Norms and Practices on Facebook and Instagram, 29 J. Res. on Adolescence 196, 196-209 (2019)).

¹⁰⁰ Emily Weinstein & Carrie James, *Behind Their Screens: What Teens Are Facing (And Adults Are Missing)*, MIT Press, at 33 (2022) (citing Lucy Foulkes and Sarah-Jayne Blakemore, *Is There Heightened Sensitivity to Social Reward in Adolescence?*, 40 Current Opinion Neurobiology 81 (2016)).

one's confidence. Especially knowing that you're not the only one who's able to see it.”¹⁰¹ Not only are children spotting and seeing posts, but now they are obsessing over the popularity of their posts and those of others. These factors all converge to create a feedback loop: because children crave this social reinforcement, they seek it out, but ultimately children are unequipped with the tools to protect themselves against the allure of “rewards” that these manipulative social media designs purportedly promise.

i. Quantified Popularity of a Minor's Account or Content

140. This design element “gamifies” a user's popularity by displaying (publicly, privately, or both) the number of friends or connections a user has, the number of interactions their content has received, and sometimes also the names or usernames of specific other users who have interacted with the user or their content. Metrics that may be displayed include views, likes, dislikes, reactions, and comments received on content.

141. These tallies act as quantified proof of popularity and exploit children's natural tendency to pursue social relevance.

If children's posts get Likes, they feel validated, but the fewer Likes they get, the worse they feel.

¹⁰¹ Katie Joseff, *Social Media Is Doing More Harm than Good*, Common Sense Media (Dec. 17, 2021), <https://www.common sense media.org/kids-action/articles/social-media-is-doing-more-harm-than-good> (last visited Jan. 27, 2024).

¹⁰²

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

143. Meta knows that

»106

144. An

107

145. A

108

Just

103

104

(pg. 8)

105

106

(pg. 12)

107

108

109

110

(pg. 6)

111 *Id.*

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED]
5 [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED]
10 [REDACTED]
11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 150. [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED] 118
18 [REDACTED]
19 [REDACTED]
20 [REDACTED]
21 [REDACTED]
22 112 [REDACTED] (pg. 13)
23 113 *Id.*
24 114 [REDACTED]
25 115 [REDACTED]
26 116 [REDACTED]
27 117 [REDACTED], (pg. 4)
28 118 [REDACTED] (pg. 2)

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

119 [REDACTED] (pg. 13)

120 *Id.*

121 *Id.*; see also [REDACTED] (pg. 4)

122 [REDACTED] (pg. 10)

123 [REDACTED] (pgs. 37-38)

124 [REDACTED] (pg. 4)

125 [REDACTED] (pg. 5)

126 <https://techcrunch.com/2016/03/15/filteredgram/> (last visited Jan. 27, 2024).

127 [REDACTED] (pg. 2) ([REDACTED])

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28

128

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28

133

- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
- 9
- 10
- 11
- 12
- 13
- 14
- 15
- 16
- 17
- 18
- 19
- 20
- 21
- 22
- 23
- 24
- 25
- 26
- 27
- 28

139

KEMP JONES, LLP
3800 Howard Hughes Parkway
Seventeenth Floor
Las Vegas, Nevada 89169
(702) 385-6000 • Fax (702) 385-6001
kjc@kempjones.com

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

143 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

170.

¹⁴⁸ <https://about.instagram.com/blog/announcements/giving-people-more-control> (last visited Jan. 27, 2024).

¹⁴⁹ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]
[REDACTED]
[REDACTED]¹⁵⁵

3. Ephemeral Content

171. As research shows and Meta knows, Young Users are developmentally wired such that the fear of missing out (“FOMO”) is a “repeatedly identified driver of smartphone and social media use[.]”¹⁵⁶ Meta induces constant engagement by making certain content ephemeral. This dovetails with a psychological concept identified by B.F. Skinner as “avoidance,” meaning that an individual performs a behavior to avoid a negative outcome.¹⁵⁷

172. Instagram utilizes avoidance as a design element by creating ephemeral posts, called “Stories,” which disappear 24 hours after being originally posted. Another example is “Live,” which gives users the ability to livestream videos to followers or the public.¹⁵⁸ When an account “goes Live,” the Instagram Platform sends out a notification that reads, “[@user] started a live video. Watch it before it ends!”¹⁵⁹

173. An [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

¹⁵⁶ Laura Marciano, Anne-Linda Camerini, Rosalba Morese, *The Developing Brain in the Digital Era: A Scoping Review of Structural and Functional Correlates of Screen Time in Adolescence*, Front. Psychol., Vol. 12 (Aug. 27, 2021) <https://www.frontiersin.org/articles/10.3389/fpsyg.2021.671817/full> (last visited Jan. 27, 2024).

¹⁵⁷ GameQuitters, *Are Video Games Designed to Be Addictive?*, <https://gamequitters.com/are-video-games-addictive/> (last visited Jan. 27, 2024).

¹⁵⁸ <https://www.facebook.com/formedia/tools/facebook-live> (last visited Jan. 27, 2024).

¹⁵⁹ <https://www.planoly.com/blog/instagram-live-guide> (last visited Jan. 27, 2024).

¹⁶⁰ [REDACTED]

174. Because of the impermanence of Stories and Live, users are incentivized to check their Instagram feeds more often, and for longer periods, so as not to miss out on any posts that may soon vanish. A recent analysis correlated use of Stories with addiction:

[U]ser engagement with Instagram Stories has a significant positive impact on psychological dependency, denoted by cognitive preoccupation and compulsive use of Instagram Stories. The literature has shown that a high level of engagement plays a predictive role in addictive use of Internet activities, and the findings of this study indicate that users who are highly engaged with Instagram Stories tend to become dependent on it. As users obtain a variety of gratifications from using Instagram Stories, they are likely to become more reliant on it, potentially leading to excessive use. ...[Further] it is clear that negative feelings exert an even stronger influence than pleasant feelings on the development of psychological dependency in the current context. On the one hand, the positive feelings that users experience from using Instagram Stories may reinforce their addictive patterns of its usage. On the other hand, because users may also experience negative emotions as a result of engaging in social interactions and self- and identity-related activities using Instagram Stories (e.g., unsuccessful self-promotion, missed opportunities, social comparison), they may become more dependent on the platform to help regulate and alter such mood states with the hope of bringing their affect back to optimal levels. However, this is alarming, as recent studies conducted by Facebook show that frequent use of Instagram could lead to detrimental effects on young users' mental health.¹⁶¹

175. Unlike content delivery systems that permit a user to view existing posts on a schedule convenient for the user, ephemeral content is only available on a temporary basis— incentivizing users to engage with the ephemeral content immediately.

[REDACTED]

177. Meta could make Live and Stories available for viewing days or weeks after they are created, allowing Young Users to take meaningful breaks from its platforms (for instance,

¹⁶¹ Jia-Dai (Evelyn) Lu, Jhih-Syuan (Elaine) Lin, *Exploring uses and gratifications and psychological outcomes of engagement with Instagram Stories*, Computers in Human Behavior Reports, Vol. 6 (May 2022), 100198, <https://www.sciencedirect.com/science/article/pii/S245195882200032X> (last visited Jan. 27, 2024) (internal citations omitted).

¹⁶² [REDACTED]

1 during the school week or while on vacation) without missing content. Instead, Meta deploys
2 ephemeral content features because it knows Young Users' fear of missing out on content will
3 keep them glued to its platforms.

4 178. For instance, [REDACTED]
5 [REDACTED]
6 [REDACTED]

7 179. That [REDACTED]
8 [REDACTED]
9 [REDACTED]

10 180. Even though it knew [REDACTED]
11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]

16 4. Push Notifications: Audio, Visual, and Haptic Alerts

17 181. Meta causes Young Users to increase their time spent on its platforms by
18 inundating them with notifications when they are off Instagram, in an effort to entice them to
19 stop whatever else they are doing and return to engaging with social media. By default,
20 Instagram peppers users (including Young Users) with frequent alerts or notifications intended
21 to cause users to open the application.

22 182. For example, because Instagram is Meta's application most commonly accessed
23 by young users through smartphones in the United States, Meta relies heavily on alerts in efforts
24

25 [REDACTED] (pg. 3)

26 ¹⁶⁴ *Id.* (pg. 25)

27 ¹⁶⁵ [REDACTED]

28 ¹⁶⁶ *Id.*

1 to monopolize young users' attention on that platform. These include haptic alerts, banner
2 notifications, sound notifications, badge notifications (persistently displayed red indication of
3 the number of events that have not yet been viewed by the user), and e-mail notifications.¹⁶⁷

4 183. These alerts are disruptive for all users but are especially harmful for minor
5 children, who are particularly vulnerable to distraction and psychological manipulation.

6 [REDACTED] independent academics have observed that
7 these notifications impact the brain in similar ways as narcotic stimulants:

8 Although not as intense as [sic] hit of cocaine, positive social stimuli will
9 similarly result in a release of dopamine, reinforcing whatever behavior
10 preceded it . . . Every notification, whether it's a text message, a "like" on
Instagram, or a Facebook notification, has the potential to be a positive social
stimulus and dopamine influx.¹⁶⁸

11 184. Preying on that vulnerability, by default Meta notifies Young Users when
12 another user follows them, likes their content, comments on their content, "tags" them, mentions
13 them, sends them a message, or "goes live" (if the young person follows the user).

14 185. As Meta [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 [REDACTED] In [REDACTED]
19 [REDACTED]
20 [REDACTED]
21 [REDACTED]
22 [REDACTED]
23 [REDACTED]

24 ¹⁶⁷ <https://www.facebook.com/help/530847210446227> (last visited Jan. 27, 2024).

25 ¹⁶⁸ <https://sitn.hms.harvard.edu/flash/2018/dopamine-smartphones-battle-time/> (last visited
26 Jan. 27, 2024).

27 ¹⁶⁹ [REDACTED]
28 [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

5. Harmful Filters

188. On September 30, 2021 while testifying before Congress, Meta executive Antigone Davis denied that Meta contains features that promote eating disorders, stating: “[w]e do not direct people towards content that promotes eating disorders. That actually violates our policies, and we remove that content when we become aware of it. We actually use AI to find content like that and remove it.”

189. She also testified that for teen girls struggling with “loneliness, anxiety, sadness, and eating disorders,” they “were more likely to say that Instagram was affirmatively helping them, not making it worse,” and that Instagram “work[s] with experts to help inform our product and policies” around eating disorders. Meta publishes this same statement in a section devoted to “[e]ating disorders” and “negative body image” in its “parent and guardian’s guide to Instagram,” which it makes available on its website.

In contrast

172

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]

¹⁷⁵ *Id.* (pg. 20)

¹⁷⁶ *Id.*

¹⁷⁷ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (emphasis added)

¹⁸⁴ *Id.* (emphasis added)

¹⁸⁵ [REDACTED]

[REDACTED]

[REDACTED] (pg. 7)

¹⁸⁷ *Id.*

¹⁸⁸ *Id.*

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

¹⁸⁹ *Id.* (pgs. 1-2)

¹⁹⁰ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

¹⁹⁶ <https://www.linkedin.com/in/margaretgstewart> (last visited Jan. 27, 2024).

¹⁹⁷ [REDACTED]

[REDACTED]

[REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

220.

D. The Challenged Platform Features Have No Relation to Traditional Publishing Activities—Any Content They Utilize Is Distinct From Their Functionality and the Harm They Cause.

221. The State does not challenge or seek to curtail the publishing of any specific type of content by challenging the above-described addicting Design Elements.

²⁰³ How To Add Filter In Whatsapp Video Call? Add Beauty Filter, <https://gadgetrekt.com/add-filter-whatsapp-video-call/> (last visited Jan. 27, 2024).

222. Notably, these Design Elements—Low-Friction Variable Rewards; Social Manipulation; Ephemeral Content; Push Notifications; and Harmful Filters—are not tethered to any specific third-party content. Indeed, the substance of any content incorporated into or used by the Design Elements is immaterial. Instead, the Design Elements themselves create the risk and harm of addiction, which is separate and apart from other harms caused by the platform.

223. Regardless of the substance of *any* content on Instagram—either first- or third-party—the purpose of the Design Elements is to extract additional time and attention from young users whose developing brains were not equipped to resist those manipulative tactics.

III. **M. K. ows T** **AMONG**
YOUNG USERS.

224. Because of Meta’s design choices, its platforms—including Instagram—have already hooked a generation of Young Users.

225. Meta

226. For example,

²⁰⁴ Under Nevada law, “‘knowingly’ means that the defendant is aware that the facts exist that constitute the act or omission.” *Poole v. Nev. Auto Dealership Invs., LLC*, 2019 Nev. App. LEXIS 4, *2. Similarly, “a ‘knowing[]’ act or omission under the NDTPA does not require that the defendant intend to deceive with the act or omission, or even know of the prohibition against the act or omission, but simply that the defendant is aware that the facts exist that constitute the act or omission.” *Id.* at *8 (alteration original).

²⁰⁵

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

227. In

206

228. Another

207

A

²⁰⁷ *Id.*

²⁰⁸ *Id.* (pg. 15)

²⁰⁹ *Id.*

²¹⁰ *Id.* (pg. 29)

²¹¹

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]

²¹³ *Id.*

²¹⁴ *Id.*

²¹⁵ *Id.*

²¹⁶ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

²¹⁷ *Id.*

²¹⁸ *Id.*

²¹⁹ *Id.*

²²⁰ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

246.

Defendants said nothing.

A. Meta Harms Young Users by Inducing Compulsive Use.

247. Defendants have substantially injured Young Users by designing their platforms, including Instagram, to induce compulsive and excessive use, which interferes with important developmental processes and behaviors.

248. These injuries include Young Users' lack of sleep and related health outcomes, diminished in-person socialization skills, reduced attention, increased hyperactivity, self-control challenges and interruption of various brain development processes.

1. Mental Health Harms

249. Maximizing children's time and activities online is linked with worse psychological well-being in children in concrete and serious ways that cannot be ignored in the context of the current youth mental health crisis. Defendants have caused Young Users to experience mental health harms, such as increased levels of depression and anxiety. In addition, Defendants have caused Young Users to have diminished social capacity and other developmental skills by virtue of the "opportunity cost" associated with devoting significant

226

227 *Id.*

1 time to social media, rather than partaking in other developmentally important, in-person life
2 experiences.

3 250. The United States Surgeon General’s May 2023 Advisory, titled “Social Media
4 and Youth Mental Health” (the “Advisory”), describes some of the harms caused by
5 Defendants.²²⁸ As the Advisory explains, “[a] Surgeon General’s advisory is a public statement
6 that calls the American people’s attention to an urgent public health issue Advisories are
7 reserved for significant public health challenges that require the nation’s immediate awareness
8 and action.”²²⁹ According to the Surgeon General, Young Users’ social media use is one such
9 significant public health challenge.

10 251. As the Advisory explains, “[e]xcessive and problematic social media use, such
11 as compulsive or uncontrollable use, has been linked to sleep problems, attention problems, and
12 feelings of exclusion among adolescents.”²³⁰

13 252. The Advisory also identifies “changes in brain structure,” “altered neurological
14 development,” “depressive symptoms, suicidal thoughts, and behaviors,” “attention
15 deficit/hyperactivity disorder (ADHD,)” and “depression, anxiety and neuroticism,” as
16 additional harms to Young Users associated with compulsive social media use.²³¹

17 [REDACTED]
18 [REDACTED]
19 [REDACTED]
20 [REDACTED]

21
22
23 ²²⁸ U.S. Dep’t of Health & Hum. Servs., *Social Media and Youth Mental Health: The U.S.*
24 *Surgeon General’s Advisory 4* (2023), <https://www.hhs.gov/sites/default/files/sg-youth-mental-health-social-media-advisory.pdf> (last visited Jan. 27, 2024).

25 ²²⁹ *Id.*

26 ²³⁰ *Id.*

27 ²³¹ To be clear, this Complaint is focused on harms arising out of compulsive or “problematic”
28 platform use, not harms caused by exposure to any individual, specific pieces or categories of
content on Defendants’ platforms.

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

255. By serving content to young users according to variable reward schedules (discussed *supra*), Meta manipulates dopamine releases in its young users, inducing them to engage repeatedly with its platforms—much like a gambler at a slot machine.

[REDACTED]

258. [REDACTED]

232 [REDACTED]
233 [REDACTED]

259. In 2020, a longitudinal study investigated whether “Facebook Addiction Disorder” predicted suicide-related outcomes and found that children and adolescents addicted to Facebook are more likely to engage in self-injurious behavior, such as cutting and suicide.²³⁷ Other studies examining the link between these increases found that adolescents who spent more time on screen activities were significantly more likely to have high depressive symptoms or have at least one suicide-related outcome, and that the highest levels of depressive symptoms were reported by adolescents with high social media use and fewer in-person social interactions.²³⁸

260. Fueled by social media addiction, youth suicide rates are up an alarming 57%.²³⁹ In the decade leading up to 2020, there was a 40% increase in high school students reporting

²³⁵ *Id.*

²³⁶ *Id.* (pg. 22)

²³⁷ See, e.g., Julia Brailovskaia et al., *Positive mental health mediates the relationship between Facebook addiction disorder and suicide-related outcomes: a longitudinal approach*, 00(00) *Cyberpsychology, Behavior, and Social Networking* (2020), <https://doi.org/10.1089/cyber.2019.0563> (last visited Jan. 27, 2024); Jean M. Twenge, et al., *Increases in Depressive Symptoms, Suicide-Related Outcomes, and Suicide Rates Among U.S. Adolescents After 2010 and Links to Increased New Media Screen Time*, 6 *Clinical Psych. Sci.* 3–17 (2017), <https://doi.org/10.1177/2167702617723376> (last visited Jan. 27, 2024).

²³⁸ Jean M. Twenge, et al., *Increases in Depressive Symptoms, Suicide-Related Outcomes, and Suicide Rates Among U.S. Adolescents After 2010 and Links to Increased New Media Screen Time*, 6 *Clinical Psych. Sci.* 3–17 (2017), <https://doi.org/10.1177/2167702617723376> (last visited Jan. 27, 2024); see also Anthony Robinson et al., *Social comparisons, social media addiction, and social interaction: An examination of specific social media behaviors related to major depressive disorder in a millennial population*, *Journal of Applied Biobehavioral Research* (Jan. 8, 2019), <https://doi.org/10.1111/jabr.12158> (last visited Jan. 27, 2024).

²³⁹ *Protecting Youth Mental Health: The U.S. Surgeon General’s Advisory* at 8, U.S. Dep’t of Health & Hum. Servs. (Dec. 7, 2021), <https://www.hhs.gov/sites/default/files/surgeon-general-youth-mental-health-advisory.pdf> (last visited Jan. 27, 2024).

1 persistent sadness and hopelessness,²⁴⁰ and a 36% increase in those who attempted to take their
2 own lives. In 2019, one in five high school girls had made a suicide plan.²⁴¹ By 2018, suicide
3 was the second leading cause of death for youth ages 10–24.²⁴²

4 261. Because of this shortage of psychiatrists and the extent of the youth mental health
5 crisis fueled by social media addiction, the number of teens and adolescents waiting in
6 emergency rooms for mental health treatment for suicide nationwide tripled from 2019 to
7 2021.²⁴³

8 2. Harm to Body Image

9 259. Design features that maximize time spent on social media can also lead to
10 heightened exposure to negative body image–related content, which increases children’s
11 susceptibility to poor body image and, consequently, disordered eating. A study of data from
12 7th and 8th graders published in 2019 in the *International Journal of Eating Disorders*
13 “suggest[ed] that [social media], particularly platforms with a strong focus on image posting
14 and viewing, is associated with elevated [disordered eating] cognitions and behaviors in young
15 adolescents.”²⁴⁴ In another study, researchers found a positive correlation between higher
16
17
18
19
20

21 ²⁴⁰ *Id.*

22 ²⁴¹ *Id.*

23 ²⁴² AAP-AACAP-CHA Declaration of a National Emergency in Child and Adolescent Mental
24 Health, Am. Acad. Pediatrics (Oct. 19, 2021), <https://www.aap.org/en/advocacy/child-and-adolescent-healthy-mental-development/aap-aacap-cha-declaration-of-a-national-emergency-in-child-and-adolescent-mental-health/> (last visited Jan. 27, 2024).

25 ²⁴³ Stephen Stock, et al., *Children languish in emergency rooms awaiting mental health care*,
26 CBS News (Feb. 27, 2023, 8:02 am), <https://www.cbsnews.com/news/emergency-rooms-children-mental-health/> (last visited Jan. 27, 2024).

27 ²⁴⁴ Simon M. Wilksch, et al., *The Relationship Between Social Media Use and Disordered*
28 *Eating in Young Adolescents*, 53 Int. J. Eat. Disord. 96, 104 (2020).

1 Instagram use and orthorexia nervosa diagnoses.²⁴⁵ Personal stories from sufferers of
2 disordered eating have highlighted the link to social media.²⁴⁶

3 260. Time spent on social media can harm children’s body image and increase their
4 susceptibility to disordered eating in multiple ways. First, visual social media platforms trigger
5 social comparison as children compare their appearance to others, including influencers. For
6 example, an exploratory study performed internally at Meta concluded that 66% of teen girls
7 on Instagram experienced negative social comparison, and 52% of those who experienced
8 negative social comparison attributed this experience to viewing images on the platform that
9 were related to beauty.²⁴⁷ None of these findings was shared with the public.

10 261. The documents Frances Haugen shared with the *Wall Street Journal* in 2021
11 revealed that Facebook has been aware at least since 2019 that “[w]e make body image issues
12 worse for one in three teen girls.”²⁴⁸ Haugen has explained how this becomes a vicious
13 feedback cycle for children: they feel bad about themselves so they go to social media for
14 distraction in order to self-soothe, only to end up seeing the type of posts that led to their anxiety
15 in the first place.²⁴⁹ Negative self-comparison on social media is experienced by cisgender girls
16

17 ²⁴⁵ Pixie G. Turner & Carmen E. Lefevre, *Instagram Use Is Linked to Increased Symptoms of*
18 *Orthorexia Nervosa*, 22 *Eating Weight Disorders* 277, 281 (2017).

19 ²⁴⁶ See, e.g., Jennifer Neda John, *Instagram Triggered My Eating Disorder*, Slate (Oct. 14,
20 2021), [https://slate.com/technology/2021/10/instagram-social-media-eating-disorder-](https://slate.com/technology/2021/10/instagram-social-media-eating-disorder-trigger.html)
21 [trigger.html](https://slate.com/technology/2021/10/instagram-social-media-eating-disorder-trigger.html) (last visited Jan. 27, 2024); Clea Skopeliti, *‘I Felt My Body Wasn’t Good Enough’:*
22 *Teenage Troubles with Instagram*, The Guardian (Sept. 18, 2021),
[https://www.theguardian.com/society/2021/sep/18/i-felt-my-body-wasnt-good-enough-](https://www.theguardian.com/society/2021/sep/18/i-felt-my-body-wasnt-good-enough-teenage-troubles-with-instagram)
[teenage-troubles-with-instagram](https://www.theguardian.com/society/2021/sep/18/i-felt-my-body-wasnt-good-enough-teenage-troubles-with-instagram) (last visited Jan. 27, 2024).

23 ²⁴⁷ *Spence v. Meta Platforms*, N.D. Cal. Case No. 3:22-cv-03294 at 9 (June 6, 2022) (citing
24 Facebook Papers: “Teen Girls Body Image and Social Comparison on Instagram – An
Exploratory Study in the US” (March. 2020), at p. 8).

25 ²⁴⁸ Georgia Wells, et al., *Facebook Knows Instagram Is Toxic for Teen Girls, Company*
26 *Documents Show*, W.S.J. (Sept. 14, 2021), [https://www.wsj.com/articles/facebook-knows-](https://www.wsj.com/articles/facebook-knows-instagram-is-toxic-for-teen-girls-company-documents-show-11631620739)
[instagram-is-toxic-for-teen-girls-company-documents-show-11631620739](https://www.wsj.com/articles/facebook-knows-instagram-is-toxic-for-teen-girls-company-documents-show-11631620739) (last visited Jan. 27,
2024)

27 ²⁴⁹ Allison Slater Tate, *Facebook Whistleblower Frances Haugen Says Parents Make 1 Big*
28 *Mistake with Social Media*, TODAY (Feb. 7, 2022, 7:06 PM EST),

1 and boys; specifically, boys feel pressure to lose weight and build muscle as a result of the
2 muscular men they see on Instagram, TikTok, and YouTube. Eliot, a 17-year-old, told the *New*
3 *York Times*, “Girls discuss those pressures more, but it’s completely the same for boys.”²⁵⁰

4 262. Second, platforms use algorithms to deliver content related to topics or themes
5 that the platform believes will maximize a user’s time spent on the platform. These
6 recommendation systems create “bubbles” or “rabbit holes” of content around a specific theme
7 and also expose users to increasingly extreme content on a given topic.²⁵¹ This has proven true
8 for negative body image and pro-eating disorder content.²⁵² Indeed, research shows that social
9 media platforms’ content selection algorithms have pushed disordered eating and harmful diet
10 techniques to teenage girls.²⁵³ Girls who express an interest in dieting or dissatisfaction with
11 their looks are bombarded with content targeted to these insecurities and often pushed to more
12 extreme content such as pro-anorexia posts and videos. And because platforms know teenage
13 girls disproportionately engage with this type of content,²⁵⁴ even minor users who do not express
14 interest in these topics are often delivered this content.

15
16 <https://www.today.com/parents/teens/facebook-whistleblower-frances-haugen-rcna15256> (last
visited Jan. 27, 2024).

17 ²⁵⁰ Alex Hawgood, *What Is ‘Bigorexia’?*, N.Y. Times (Mar. 5, 2022, updated May 17, 2022),
18 <https://www.nytimes.com/2022/03/05/style/teen-bodybuilding-bigorexia-tiktok.html> (last
visited Jan. 27, 2024).

19 ²⁵¹ Fairplay, *Designing for Disorder: Instagram’s Pro-eating Disorder Bubble* at 1 (Apr. 2022),
20 https://fairplayforkids.org/wp-content/uploads/2022/04/designing_for_disorder.pdf (last
visited Jan. 27, 2024); *Inside TikTok’s Algorithm: A WSJ Video Investigation*, W.S.J. (July 21,
21 2021), <https://www.wsj.com/articles/tiktok-algorithm-video-investigation-11626877477> (last
visited Jan. 27, 2024).

22 ²⁵² Fairplay, *Designing for Disorder: Instagram’s Pro-eating Disorder Bubble* at 6-7 (Apr.
23 2022), https://fairplayforkids.org/wp-content/uploads/2022/04/designing_for_disorder.pdf
(last visited Jan. 27, 2024).

24 ²⁵³ See generally *id.*; Jim Waterson & Alex Hern, *Instagram ‘Pushes Weight-Loss Messages to*
25 *Teenagers*, The Guardian (Jul 19, 2021, 7:01 AM), [https://www.theguardian.com/society/](https://www.theguardian.com/society/2021/jul/20/instagram-pushes-weight-loss-messages-to-teenagers)
[2021/jul/20/instagram-pushes-weight-loss-messages-to-teenagers](https://www.theguardian.com/society/2021/jul/20/instagram-pushes-weight-loss-messages-to-teenagers) (last visited Jan. 27, 2024).

26 ²⁵⁴ See Fabrizio Bert et al., *Risks and Threats of Social Media Websites: Twitter and the Proana*
27 *Movement*, 19 *Cyberpsychology, Behav. Soc. Networking* (Apr. 2016),
<https://pubmed.ncbi.nlm.nih.gov/26991868/> (last visited Jan. 27, 2024).

263. The harm that social media does to children’s body image and eating habits has been widely discussed in public discourse in recent months, but even as of the filing of this Action, content depicting disordered eating remains widely available to children and profitable to platforms,²⁵⁵ and even popular among teens, who are exposed to more of it as they spend more time online.

3. “Problematic” Internet Use

264. Maximizing time and activities online also fosters “problematic internet use”—psychologists’ term for excessive internet activity that exhibits addiction, impulsivity, or compulsion.²⁵⁶ Indeed, the design features discussed in this Action plainly impede children’s ability to put their devices down, even when they want to use them less. For example, a high school student told Common Sense Media,

One of the challenges I face with social media is getting off it. Once I get on, I have to really force myself off it because it’s so addictive. All I’m doing is scrolling, but I’m subconsciously looking for an end so I can feel accomplished. But the scrolling never stops.²⁵⁷

265. Problematic internet use, in turn, is linked to a host of additional problems. For example, in one study of 564 children between the ages of 7 and 15 spearheaded by the Child Mind Institute in New York, researchers found that problematic internet use was positively associated with depressive disorders, Attention Deficit Hyperactivity Disorder, general impairment, and increased sleep disturbances.²⁵⁸ A meta-analysis of peer-reviewed studies

²⁵⁵ Fairplay, *Designing for Disorder: Instagram’s Pro-eating Disorder Bubble* (Apr. 2022), https://fairplayforkids.org/wp-content/uploads/2022/04/designing_for_disorder.pdf (last visited Jan. 27, 2024).

²⁵⁶ Chloe Wilkinson, et al., *Screen Time: The Effects on Children’s Emotional, Social, and Cognitive Development at 6* (2021), <https://informedfutures.org/screen-time/> (last visited Jan. 27, 2024).

²⁵⁷ Katie Joseff, *Social Media Is Doing More Harm than Good*, Common Sense Media (Dec. 17, 2021), <https://www.common sense media.org/kids-action/articles/social-media-is-doing-more-harm-than-good> (last visited Jan. 27, 2024).

²⁵⁸ Restrepo, et al., *Problematic Internet Use in Children and Adolescents: Associations with Psychiatric Disorders and Impairment*, 20 BMC Psychiatry 252 (2020), <https://doi.org/10.1186/s12888-020-02640-x> (last visited Jan. 27, 2024).

1 involving cognitive findings associated with problematic internet use in both adults and
2 adolescents found “firm evidence that PIU . . . is associated with cognitive impairments in motor
3 inhibitory control, working memory, Stroop attentional inhibition and decision-making.”²⁵⁹
4 Another study of over 11,000 European adolescents found that among teens exhibiting
5 problematic internet use, 33.5% reported moderate to severe depression; 22.2% reported self-
6 injurious behaviors such as cutting; and 42.3% reported suicidal ideation.²⁶⁰ The incidence of
7 attempted suicide was also ten times higher for teens exhibiting problematic internet use than
8 their peers who exhibited healthy internet use.²⁶¹

9 4. Harm to Physical Health

10 Meta

11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 268. Maximizing children’s time spent online at the expense of sleep or movement
19 also harms children’s physical health.

20 ²⁵⁹ Konstantinos Ioannidis, et al., *Cognitive Deficits in Problematic Internet Use: Meta-Analysis*
21 *of 40 Studies*, 215 *British Journal of Psychiatry* 639, 645 (2019), <https://pubmed.ncbi.nlm.nih.gov/30784392/> (last visited Jan. 27, 2024).

22 ²⁶⁰ Michael Kaess, et al., *Pathological Internet use among European adolescents:*
23 *psychopathology and self-destructive behaviours*, 23 *Eur. Child & Adolescent Psychiatry* 1093,
24 1096 (2014), <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC4229646/> (last visited Jan. 27,
2024).

25 ²⁶¹ *Id.*

26 ²⁶² [REDACTED]

27 ²⁶⁴ *Id.* (pg. 7)
28

269. When children are driven to spend more time online, they sleep less—because it is impossible to be online and sleep at the same time, because stimulation before bedtime disrupts sleep patterns, and because many of the design features discussed in this Action make users feel pressured to be connected constantly, and that feeling doesn’t always go away at nighttime. Indeed, research shows that children who exhibit problematic internet use often suffer from sleep problems.²⁶⁵

270. One-third of teens say that at least once per night, they wake up and check their phones for something other than the time, such as to check their notifications or social media.²⁶⁶

271. Some teens set alarms in the middle of the night to remind them to check their notifications or complete video game tasks that are only available for a limited time.²⁶⁷

272. In addition, screen time before bed is known to inhibit academic performance in children.²⁶⁸

273. Teenagers who use social media for more than five hours per day are about 70% more likely to stay up late on school nights.²⁶⁹

²⁶⁵ Restrepo, et al., *Problematic Internet Use in Children and Adolescents: Associations with Psychiatric Disorders and Impairment*, 20 BMC Psychiatry 252 (2020), <https://doi.org/10.1186/s12888-020-02640-x> (last visited Jan. 27, 2024).

²⁶⁶ Common Sense, *Screens and Sleep: The New Normal: Parents, Teens, Screens, and Sleep in the United States* at 7 (2019), <https://www.common sense media.org/sites/default/files/research/report/2019-new-normal-parents-teens-screens-and-sleep-united-states-report.pdf> (last visited Jan. 27, 2024).

²⁶⁷ Emily Weinstein & Carrie James, *Behind Their Screens: What Teens Are Facing (And Adults Are Missing)*, MIT Press, at 31 (2022).

²⁶⁸ Chloe Wilkinson, et al., *Screen Time: The Effects on Children’s Emotional, Social, and Cognitive Development* at 6 (2021), <https://informedfutures.org/screen-time/> (last visited Jan. 27, 2024).

²⁶⁹ *Heavy Social Media Use Linked to Poor Sleep*, BBC News (Oct. 23, 2019), <https://www.bbc.com/news/health-50140111> (last visited Jan. 27, 2024).

274. A lack of sleep among teenagers has been linked to inability to concentrate, poor grades, drowsy-driving incidents, anxiety, depression, thoughts of suicide, and even suicide attempts.²⁷⁰

275. Decades of research have shown that more time online is consistently correlated with children's risk of obesity, which in turn increases their risk of serious illnesses like diabetes, high blood pressure, heart disease, and depression.²⁷¹ Spending time online displaces time when children could be engaging in physical activity.²⁷² Further, when children spend more time online, they are exposed to more advertisements for unhealthy products,²⁷³ which are heavily targeted toward children.²⁷⁴ In addition, poor sleep quality—which, as discussed above, is associated with problematic internet use—increases the risk of childhood obesity by 20%.²⁷⁵ Broadly, the harms of social media use include increased rates of major depressive

²⁷⁰ *Among teens, sleep deprivation an epidemic*, Stanford News Ctr. (Oct. 8, 2015), <https://med.stanford.edu/news/all-news/2015/10/among-teens-sleep-deprivation-an-epidemic.html> (last visited Jan. 27, 2024).

²⁷¹ Jeff Chester, et al., *Big Food, Big Tech, and the Global Childhood Obesity Pandemic* at 3 (2021), https://democraticmedia.org/assets/resources/full_report.pdf (last visited Jan. 27, 2024).

²⁷² E de Jong, et al., *Association Between TV Viewing, Computer Use and Overweight, Determinants and Competing Activities of Screen Time in 4- to 13-Year-Old Children*, 37 Int'l J. Obesity 47, 52 (2013), <https://pubmed.ncbi.nlm.nih.gov/22158265/> (last visited Jan. 27, 2024).

²⁷³ *Id.*

²⁷⁴ Jeff Chester, et al., *Big Food, Big Tech, and the Global Childhood Obesity Pandemic* at 3 (2021), https://democraticmedia.org/assets/resources/full_report.pdf (Last visited Jan. 27, 2024).

²⁷⁵ Yanhui Wu, et al., *Short Sleep Duration and Obesity Among Children: A Systematic Review and Meta-Analysis of Prospective Studies*, 11 Obesity Rsch. & Clinical Prac. 140, 148 (2015), <https://pubmed.ncbi.nlm.nih.gov/27269366/> (last visited Jan. 27, 2024); Michelle A. Miller et al., *Sleep Duration and Incidence of Obesity in Infants, Children, and Adolescents: A Systematic Review and Meta-Analysis of Prospective Studies*, 41 Sleep 1, 15 (2018), <https://pubmed.ncbi.nlm.nih.gov/29401314/> (last visited Jan. 27, 2024).

1 episodes, anxiety, eating disorders, body image problems, sleep disturbances, suicidal ideation,
2 and suicide attempts.²⁷⁶

3 5. Privacy Harms

4 270. Design features that maximize children’s time and activities online also
5 exacerbate privacy harms. Like all users, children are tracked as they engage in online
6 activities.²⁷⁷ Data about what children do online is collected by a vast network that includes
7 platforms, marketers, and third-party data brokers all over the world that use the information
8 apps, websites, and other services collect and retain about children to profile them, make
9 predictions about their choices, and influence their behavior. Children do not developmentally
10 understand digital privacy. The constant surveillance they are subjected to as a result of these
11 techniques is manipulative, limits creativity and experimentation, and perpetuates
12 discrimination, substantially harming children and teens.

13 271. Invasion of privacy has been recognized as a common law tort for over a century.
14 *See Matera v. Google Inc.*, 15-CV-0402, 2016 WL 5339806, at *10 (N.D. Cal, Sept. 23, 2016)
15 (citing Restatement (Second) of Torts §§ 652A-I for the proposition that “the right to privacy
16 was first accepted by an American court in 1905, and ‘a right to privacy is now recognized in
17 the great majority of the American jurisdictions that have considered the question’”); *see also*,
18 Restatement (Second) of Torts § 652B and defining an intrusion claim as follows: “One who
19 intentionally intrudes, physically or otherwise, upon the solitude or seclusion of another or his
20 private affairs or concerns, is subject to liability to the other for invasion of his privacy, if the
21 intrusion would be highly offensive to a reasonable person.”

23 ²⁷⁶ *See, e.g.*, Jonothan Haidt & Jean Twenge, *Social Media and Mental Health: A Collaborative*
24 *Review*, (New York University, unpublished manuscript), [tinyurl.com/](https://tinyurl.com/SocialMediaMentalHealthReview)
25 [SocialMediaMentalHealthReview](https://tinyurl.com/SocialMediaMentalHealthReview) (last visited Jan. 27, 2024); Jacqueline Nesi et al., *Handbook*
of Adolescent Digital Media Use and Mental Health, Cambridge Univ. Press (2022).

26 ²⁷⁷ *See, e.g.*, Reyes, et al., “*Won’t Somebody Think of the Children?*” *Examining COPPA*
27 *Compliance at Scale*, 3 *Proceedings on Privacy Enhancing Technologies* 63, at 77 (2018),
28 <https://petsymposium.org/2018/files/papers/issue3/popets-2018-0021.pdf> (finding that out of
5,855 child-directed apps, roughly 57% were collecting personal information in potential
violation of the Children’s Online Privacy Protection Act) (last visited Jan. 27, 2024).

1 272. As Justice Brandeis explained in his seminal article, *The Right to Privacy*, “[t]he
2 common law secures to each individual the right of determining, ordinarily, to what extent his
3 thoughts, sentiments, and emotions shall be communicated to others.” Samuel D. Warren &
4 Louis Brandeis, *The Right to Privacy*, 4 HARV. L. REV. 193, 198 (1890). The Supreme Court
5 similarly recognized the primacy of privacy rights, explaining that the Constitution operates in
6 the shadow of a “right to privacy older than the Bill of Rights.” *Griswold v. Connecticut*, 381
7 U.S. 479, 486 (1965).

8 273. More recently, the Supreme Court explicitly recognized the reasonable
9 expectation of privacy an individual has in her cell phone, and the Personal Data generated
10 therefrom, in its opinion in *Carpenter v. United States*, 138 S. Ct. 2206 (2018). There, the Court
11 held that continued access of an individual’s cell phone location data constituted a search under
12 the Fourth Amendment because “a cell phone—almost a “feature of human anatomy[.]”—tracks
13 nearly exactly the movements of its owner . . . A cell phone faithfully follows its owner beyond
14 public thoroughfares and into private residences, doctor’s offices, political headquarters, and
15 other potentially revealing locales . . . Accordingly, when the Government tracks the location
16 of a cell phone it achieves near perfect surveillance, as if it had attached an ankle monitor to the
17 phone’s user.” *Id.* at 2218 (internal citations omitted).

18 274. And, even more recently, the Northern District of California, in an order denying
19 a motion to dismiss an intrusion upon seclusion claim for the exfiltration of children’s personal
20 data in different mobile apps, held that “current privacy expectations are developing, to say the
21 least, with respect to a key issue raised in these cases – whether the data subject owns and
22 controls his or her personal information, and whether a commercial entity that secretly harvests
23 it commits a highly offensive or egregious act.” *McDonald v. Kiloo ApS*, 385 F. Supp.3d 1022,
24 1035 (N.D. Cal. 2019). The *McDonald* court’s reasoning was subsequently adopted in the
25 District of New Mexico in analogous litigation. *See New Mexico ex rel. Balderas v. Tiny Lab*
26 *Prods.*, 457 F. Supp. 3d 1103, 1127 (D.N.M. 2020), *on reconsideration*, No. 18-854 MV/JFR,
27 2021 WL 354003 (D.N.M. Feb. 2, 2021).

275. It is precisely because of Instagram’s capacity for “near perfect surveillance” that courts have consistently held that time-honored legal principles recognizing a right to privacy in one’s affairs naturally apply to online monitoring. Defendants’ unlawful intrusion into their minor users’ privacy is made even more egregious and offensive by the fact that the Defendants are targeting and collecting *children’s* information, without obtaining parental consent. The conduct described herein violates children’s expectations of privacy, as well as a parent’s inherent right to protect his or her child and set the parameters of what, when, and how information pertaining to the child will be obtained. Parents’ interest in the care, custody, and control of their children is perhaps the oldest of the fundamental liberty interests recognized by society. The history of Western civilization reflects a strong tradition of parental concern for the nurture and upbringing of children in light of children’s vulnerable predispositions. Our society recognizes that parents should maintain control over who interacts with their children and how, in order to ensure the safe and fair treatment of their children.

6. Risk to Physical Safety

276. Finally, Defendants’ platform provides fertile ground for child predators. In November 2019, the National Center on Sexual Exploitation partnered with DC-based, survivor-led service organization Courtney’s House, Australia’s Collective Shout, and Canada’s Defend Dignity to launch #WakeUpInstagram, a campaign calling out Instagram for facilitating child sexual abuse, sex trafficking, and the grooming of young children on its platform.²⁷⁸

277. In May 2021, the child protection non-profit Thorn published quantitative research, based on data collected in 2020.²⁷⁹ According to this report, Instagram ranked at

²⁷⁸ <https://endsexualexploitation.org/articles/joint-international-campaign-launched-to-wakeupinstagram-to-sexual-exploitation-on-its-platform/> (last visited Jan. 27, 2024).

²⁷⁹ Thorn, *Responding to Online Threats: Minors’ Perspectives on Disclosing, Reporting, and Blocking Findings from 2020 quantitative research among 9–17 year olds*, (May 2021), [https://info.thorn.org/hubfs/Research/Responding%20to%20Online%20Threats 2021-Full-Report.pdf?utm_campaign=H2D%20report&utm_source=website](https://info.thorn.org/hubfs/Research/Responding%20to%20Online%20Threats%2021-Full-Report.pdf?utm_campaign=H2D%20report&utm_source=website) (last visited Jan. 27, 2024).

the top among platforms for various harms caused to minors. Thorn found the following regarding harm on Instagram:

- 26% of surveyed minors reported having had a potentially harmful online experience through Instagram (tied with Snapchat for the highest percentage).
- Instagram tied with Snapchat again as most popular platforms where the most survey participants said they have had an online sexual interaction (16% of all respondents). Sexually explicit interaction could include being asked to send a nude photo or video, go ‘on cam’ with a sexually explicit stream, being sent a sexually explicit photo (of themselves or another child), or sexually explicit messages, etc.
- Of those who use Instagram at least once a day, 22% reported experiencing a sexually explicit interaction on the platform (second only to Snapchat at 23%).
- Most disturbing, Thorn notes that among the most used platforms, Instagram (together with Snapchat) appears to host the highest concentration of sexually explicit interactions between minors and adults (13% of users).
- Teenage girls, who are particularly vulnerable to online sexual interactions, have the majority of these experiences on Instagram (21%) and Snapchat (21%) —mirroring the experience of minors overall.

278. Instagram is uniquely positioned to place children in contact with predators, without the knowledge of their parents, and to date, they have operated with flagrant disregard for the safety of their child users.

IV. META ENGAGES IN DECEPTIVE CONDUCT BY OMITTING AND MISREPRESENTING MATERIAL FACTS ABOUT INSTAGRAM.

279. Under the NDTPA, a business engages in deceptive conduct when its acts, statements, or omissions have a capacity or tendency to deceive whether that is intentional or not.²⁸⁰

²⁸⁰ *Poole v. Nev. Auto Dealership Invs., LLC*, 2019 Nev. App. LEXIS 4.

280. For years, [REDACTED]

A. Meta Did Not Disclose Its Knowledge That [REDACTED]

281. Defendants have long known that their platforms are likely harming a significant portion of its user-base.

For instance, in [REDACTED]

²⁸¹ [REDACTED]

²⁸² *Id.* (pg. 41)

²⁸³ *Id.* (pg. 46)

²⁸⁴ *Id.*

[REDACTED]

²⁸⁵ *Id.* (pg. 24)

²⁸⁶ [REDACTED]

²⁸⁸ See, e.g., Julia Brailovskaia et al., *Positive mental health mediates the relationship between Facebook addiction disorder and suicide-related outcomes: a longitudinal approach*, 00(00) *Cyberpsychology, Behavior, and Social Networking* (2020), <https://doi.org/10.1089/cyber.2019.0563> (last visited Jan. 27, 2024); Jean M. Twenge et al., *Increases in Depressive Symptoms, Suicide-Related Outcomes, and Suicide Rates Among U.S.*

[REDACTED]

Adolescents After 2010 and Links to Increased New Media Screen Time, 6 Clinical Psych. Sci. 3–17 (2018).

²⁸⁹ Jean M. Twenge, et al., *Increases in Depressive Symptoms, Suicide-Related Outcomes, and Suicide Rates Among U.S. Adolescents After 2010 and Links to Increased New Media Screen Time*, 6 Clinical Psych. Sci. 3–17 (2017), <https://doi.org/10.1177/2167702617723376> (last visited Jan. 27, 2024); see also Anthony Robinson, et al., *Social comparisons, social media addiction, and social interaction: An examination of specific social media behaviors related to major depressive disorder in a millennial population*, Journal of Applied Biobehavioral Research (Jan. 8, 2019), <https://doi.org/10.1111/jabr.12158> (last visited Jan. 27, 2024).

²⁹⁰ [REDACTED]

[REDACTED]

²⁹² [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

²⁹⁵ *Id.*

²⁹⁶ [REDACTED]

²⁹⁸ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

[REDACTED]

³⁰⁰ On information and belief, certain subsets of Facebook and Instagram [REDACTED]

³⁰¹ [REDACTED]

³⁰² *Id.* (pg. 21)

³⁰³ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

295.

imposed by Instagram and others.

1. Meta's

296. Although Meta understood

to reduce those

harms.

As early as

³⁰⁴ *Id.*

³⁰⁵

³⁰⁶ *Id.*

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED]
5 [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED]
10 [REDACTED]
11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 [REDACTED]
19 [REDACTED]
20 [REDACTED]
21 [REDACTED]
22 [REDACTED]
23 [REDACTED]

24 _____

25 ³⁰⁷ *Id.*

26 ³⁰⁸ *Id.*

27 ³⁰⁹ [REDACTED]

28 ³¹⁰ *Id.*

³¹¹ *Id.*

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

³¹² [REDACTED]

³¹³ *Id.*

³¹⁴ [REDACTED]

³¹⁵ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

³²⁰ *Id.* (emphasis added)

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

320.

322

2. Meta

As described above, Meta

³²¹ [REDACTED]

³²² *Id.*

³²³ [REDACTED]

³²⁴ *Id.*

1	[REDACTED]
2	[REDACTED]
3	[REDACTED]
4	[REDACTED]
5	[REDACTED]
6	[REDACTED]
7	[REDACTED]
8	[REDACTED]
9	[REDACTED]
10	[REDACTED]
11	[REDACTED]
12	[REDACTED]
13	[REDACTED]
14	[REDACTED]
15	[REDACTED]
16	[REDACTED]
17	[REDACTED]
18	[REDACTED]
19	[REDACTED]
20	[REDACTED]
21	[REDACTED]
22	
23	
24	
25	
325	[REDACTED]
326	<i>Id.</i>
327	<i>Id.</i>
328	[REDACTED]

331. On information and belief, Meta’s internal culture of secrecy was designed to keep consumers, parents, guardians, and policy makers in the dark about the harm Meta was causing its users, including Instagram users.

Meta's decision-making

329 [REDACTED]

[REDACTED] [REDACTED]

[REDACTED] [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

³³² *Id.* (pg. 3)

³³³ *Id.* (pg. 20)

³³⁴ [REDACTED]

³³⁵ *Id.*

³³⁶ *Id.*

KEMP JONES, LLP
3800 Howard Hughes Parkway
Seventeenth Floor
Las Vegas, Nevada 89169
(702) 385-6000 • Fax (702) 385-6001
kjc@kempjones.com

1	[REDACTED]
2	[REDACTED]
3	[REDACTED]
4	[REDACTED]
5	[REDACTED]
6	[REDACTED]
7	[REDACTED]
8	[REDACTED]
9	[REDACTED]
10	[REDACTED]
11	[REDACTED]
12	[REDACTED]
13	[REDACTED]
14	[REDACTED]
15	[REDACTED]
16	[REDACTED]
17	[REDACTED]
18	[REDACTED]
19	[REDACTED]
20	[REDACTED]
21	[REDACTED]
22	[REDACTED]
23	[REDACTED]
24	[REDACTED]
25	[REDACTED]
26	337 [REDACTED]
27	[REDACTED]
28	[REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

³⁴⁰ [REDACTED] (pg. 1)

³⁴¹ *Id.* (pgs. 10-11)

³⁴² *Id.* (pg. 9)

³⁴³ *Id.* (pgs. 9-10) (emphasis added)

³⁴⁴ *Id.* (pg. 9)

³⁴⁵ [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

346 [REDACTED]

347 *Id.*

348 [REDACTED]

349 *Id.*

350 *Id.*

1 362. Upon information and belief, Meta never publicly disclosed [REDACTED]

2 [REDACTED]
3 [REDACTED]
4 [REDACTED] Meta [REDACTED]

5 1. Meta's Community Standards Enforcement Reports [REDACTED]
6 [REDACTED]

7 363. Through public representations, Meta creates the impression that Instagram is a
8 safe platform on which harmful content is rarely encountered.

9 364. For example, Meta broadcasts that message through its Community Standards
10 Enforcement Reports ("the Reports"), which the Company publishes quarterly on its online
11 "Transparency Center" and amplifies through press releases.

12 365. The Reports describe the percentage of content posted on Instagram that Meta
13 removes for violating Instagram's community standards. Meta often refers to that percentage as
14 its "prevalence" metric.

15 366. Through [REDACTED]
16 [REDACTED]

17 367. The Reports create the impression that because Meta aggressively enforces
18 platform community standards—thereby reducing the "prevalence" of community-standards-
19 violating content—Instagram is a safe product that only rarely exposes users (including Young
20 Users) to harmful content.

21 368. However, this is a false equivalency intended to sow confusion. As Meta well
22 understands, the prevalence of community-standards-violating content, which is often quite
23 low, is not the same as the actual prevalence of *harmful content*, which is rampant on Instagram.

24 369. The "community standards," which are drafted by Meta, address only a narrow
25 subset of harmful content; indeed, Meta purposely designed those standards narrowly so that
26 they are rarely violated.

1 370. This allows Meta to expressly represent that Instagram is safe due to
2 enforcement of these community standards. But this simply is artful misclassification—
3 enabling Meta to engage in a conversation that purposely excludes and ignores the larger swath
4 of harmful content on Instagram.

5 [REDACTED] For example, [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED]
10 [REDACTED]
11 [REDACTED]

12 373. This representation—publicly accessible on Meta’s online Transparency
13 Center—creates the impression that through the Reports, Meta is disclosing its information
14 most relevant to the safety of Instagram and the incidence of harmful content on that platform.
15 In other words, Meta posts these reports to its online Transparency Center so that users, parents,
16 and guardians who visit that site will wrongly believe that Young Users are unlikely to
17 experience harm on Instagram.

18 374. Indeed, documents show that Meta intended the Reports to create that exact
19 (mis)understanding.

20 375. In [REDACTED]
21 [REDACTED]
22 [REDACTED]
23 [REDACTED]

24 352 [REDACTED]
25 353 <https://transparency.fb.com/data/community-standards-enforcement/> (last visited Jan. 27,
26 2024).

27 354 [REDACTED]
28 [REDACTED] (pg. 12)

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

One such

³⁵⁶ *Id.*

³⁵⁷ *Id.*

³⁵⁸

³⁶¹ *Id.*

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

³⁶²

(pg. 21)

³⁶⁴ *Id.*

³⁶⁵ *Id.*

390. Meta employs “sleights of hand” in its enforcement policies, mechanisms, measurement, and reporting. As a recent Wall Street Journal exposé explains, “Meta had come to approach governing user behavior as an overwhelmingly automated process,” meaning that it relied on machine learning to (1) identify and (2) handle objectionable content.³⁶⁸

391. But this also meant that Meta “shifted resources away from” any human-led review, a shift which also included paying less attention to user-reported harmful content.³⁶⁹ Meta “added steps to the reporting process” in 2019 in an effort “[t]o discourage users from filing reports.”³⁷⁰

392. This move to automated review created two critical problems: first, “[t]he systems didn’t catch anywhere near the majority of banned content—only the majority of what the company ultimately removed,” and second, “[a]s a data scientist warned Guy Rosen, Facebook’s head of integrity at the time, **Meta’s classifiers were reliable enough to remove only a low single-digit percentage of hate speech with any degree of precision.**”³⁷¹

393. “There’s a grading-your-own-homework problem,” said Zvika Krieger, a former director of responsible innovation at Meta who worked with the Well-Being Team. “Meta

³⁶⁶ *Id.*

³⁶⁷ *Id.*

³⁶⁸ Jeff Horwitz, *His Job Was to Make Instagram Safe for Teens. His 14-Year-Old Showed Him What the App Was Really Like*, The Wall Street Journal (Nov. 2, 2023), <https://www.wsj.com/tech/instagram-facebook-teens-harassment-safety-5d991be1> (last visited Jan. 27, 2024).

³⁶⁹ *Id.*

³⁷⁰ *Id.*

³⁷¹ *Id.* (emphasis added).

1 defines what constitutes harmful content, so it shapes the discussion of how successful it is at
2 dealing with it.”³⁷²

3 394. In other words, contrary to the impression the Reports created, Instagram users
4 in general—and Young Users in particular—regularly encounter content related to self-harm,
5 bullying, and harassment on Instagram. Through its Reports, Meta affirmatively, drastically,
6 and materially misrepresents the actual prevalence of such harms.

7
8 **2. Meta’s** [REDACTED]

9 395. Meta’s leadership team understood the discrepancy between Meta’s public
10 Reports and Meta’s internal survey results.

11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 [REDACTED]
19 [REDACTED]
20 [REDACTED]
21 [REDACTED]
22 [REDACTED]

23
24
25 ³⁷² *Id.*

26 ³⁷³ [REDACTED]

27 ³⁷⁴ *Id.*

28 ³⁷⁵ *Id.*

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED]
5 [REDACTED]
6 [REDACTED]
7 [REDACTED]
8 [REDACTED]
9 [REDACTED]
10 [REDACTED]
11 [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]
17 [REDACTED]
18 [REDACTED]
19 [REDACTED]
20 [REDACTED]
21 [REDACTED]
22 [REDACTED]

23
24
25 ³⁷⁶ *Id.*
26 ³⁷⁷ *Id.*
27 ³⁷⁸ *Id.*
28 ³⁷⁹ *Id.*
³⁸⁰ *Id.*

409.

382

C. Meta Deceived Consumers by

410. Meta has affirmatively deceived consumers by promoting and maintaining inaccurate time-tracking tools on Meta platforms.

411. On August 1, 2018, Meta announced “new tools to help people manage their time on Facebook and Instagram.” The announcement touted platform-specific activity dashboards, daily use reminders, and a push notification-limiting tool engineered “based on collaboration and inspiration from leading mental health experts and organizations, academics, [Meta’s] own extensive research and feedback from [Meta’s] community.”³⁸³

412. In that announcement, Meta acknowledged that it has “a responsibility to help people understand how much time they spend on [Meta] platforms so they can better manage their experience.” Meta stated that it hopes “that these tools give people more control over the

381

(pg. 2)

³⁸³ Ameet Ranadive, *New Tools to Manage Your Time on Facebook and Instagram*, Facebook (Aug. 1, 2018), <https://about.fb.com/news/2018/08/manage-your-time/#:~:text=To%20access%20the%20tools%2C%20go,total%20time%20for%20that%20day> (last visited Jan. 27, 2024).

1 time they spend on our platforms and also foster conversations between parents and teens about
2 the online habits that are right for them.”³⁸⁴

3 [REDACTED] Through these public statements and others, Meta led Nevada consumers,
4 parents, and guardians to believe they could rely on Meta’s so-called [REDACTED]

5 [REDACTED]

6 [REDACTED]

7 [REDACTED]

8 [REDACTED]

9 [REDACTED]

10 [REDACTED]

11 [REDACTED]

12 [REDACTED]

13 [REDACTED]

14 [REDACTED]

15 [REDACTED]

16 [REDACTED]

17 [REDACTED]

18 [REDACTED]

19 [REDACTED]

20 [REDACTED]

21 [REDACTED]

22 [REDACTED]

23 [REDACTED]

24 [REDACTED]

25 [REDACTED]

26 [REDACTED]

27 [REDACTED]

28 [REDACTED]

³⁸⁴ *Id.*

³⁸⁵ [REDACTED]

KEMP JONES, LLP
3800 Howard Hughes Parkway
Seventeenth Floor
Las Vegas, Nevada 89169
(702) 385-6000 • Fax (702) 385-6001
kjc@kempjones.com

1		
2		
3		
4		
5		
6		
7		
8		
9		
10		
11		
12		
13		
14		
15		
16		
17		
18		
19		
20		
21		
22		
23		
24		
25		
26		
27		
28		

422.

D. Through Public Misrepresentations, Meta Leads the Public to Trust That

423. The Time Spent episode is not the only time Meta has prioritized winning trust over telling the truth. To the contrary, Meta has repeatedly misrepresented facts about its business to convince consumers, parents, and guardians that Meta can be trusted to keep Young Users safe on Instagram.

1. To Engender Public Trust, Meta Created the False Impression That It Does Not

To downplay concerns that its platforms are addictive, Meta has repeatedly created the public impression that it

(pg. 1)

390

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

[REDACTED]

432. [REDACTED] Meta affirmatively misled the public—including Nevada consumers, parents, and guardians—about the Company’s motivations and internal business practices. This is a material misrepresentation, as reasonable consumers, parents, and guardians would be less likely to trust a platform that works to capture ever-increasing shares of users’ time.

2. Meta Deceptively Testified That It Age-Gates Content Inappropriate for Young Users.

433. Meta also cultivated the impression that it protects Young Users from harmful or inappropriate content on Instagram.

391 [REDACTED]

1 434. In the opening remarks to her September 2021 Congressional testimony about
2 the mental health effects of Meta’s platforms, Antigone Davis—Meta’s Global Head of
3 Safety—told lawmakers: “We have put in place multiple protections to create safe and age-
4 appropriate experiences for people between the ages of 13 and 17.”

5 435. During subsequent questioning from senators, Davis explained that “[w]hen it
6 comes to those between 13 and 17, we consult with experts to ensure that our policies properly
7 account for their presence, for example, by age-gating content.” Davis added, Meta does not
8 “allow young people to see certain types of content. And we have age gating around certain
9 types of content.”³⁹⁵

10 436. Davis also specifically testified that Meta does not “direct people towards
11 content that promotes eating disorders.”³⁹⁶

12 437. Through Davis’s testimony, Meta led the public to believe that Meta successfully
13 age-gates content that is inappropriate or harmful for Young Users.

14 But

23 441.

25 _____
26 ³⁹⁵ <https://www.rev.com/blog/transcripts/facebook-head-of-safety-testimony-on-mental-health-effects-full-senate-hearing-transcript> (last visited Jan. 27, 2024).

27 ³⁹⁶ *Id.*

28 ³⁹⁷

1 calculates the monetary value that [REDACTED]
2 [REDACTED]

3
4 **4. Meta Created the Misleading Impression That It Was Not**
5 [REDACTED].

6 449. Through Congressional testimony, Meta deceptively led the public to believe
7 that it had not changed its internal data and research access policies in response to The Wall
8 Street Journal's 2021 coverage of Meta's internal research findings. Meta wanted to create that
9 impression so consumers, parents, and guardians would believe that the Company had no reason
10 to lock down internal information about Instagram's mental health impacts.

11 450. During Davis's September 2021 Congressional testimony, Tennessee Senator
12 Marsha Blackburn asked Davis "how are you restricting access to data internally? Have your
13 policies changed since The Wall Street Journal articles [describing the Meta's internal well-
14 being research]?"

15 451. Davis succinctly responded, "Senator, not that I am—not that I'm aware of
16 certainly."

17 452. Through Davis's testimony, Meta led the public to believe Meta did not change
18 its internal access policies—such as restricting internal access to data and research—following
19 The Wall Street Journal's coverage of Meta's internal well-being research.

20 [REDACTED]
21 [REDACTED]
22 [REDACTED]
23 [REDACTED]
24 [REDACTED]
25 [REDACTED]

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

456.

5. Meta Created the Impression That Its Platforms Are Not

457. Through Congressional testimony, Meta led the public to believe that its platforms are not addictive, despite the Company's internal research to the contrary.

458. In her September 2021 Congressional testimony, Davis said that Meta does not build its products to be addictive and disputed the addictive nature of Meta's products.

459. Similarly, in Congressional testimony from December 2021, Adam Mosseri said, "I don't believe that research suggests that our products are addictive."

460. Through Davis and Mosseri's testimony, Meta led the public to believe Meta's platforms are not addictive.

In fact, as described in detail above,

⁴⁰⁰ *Id.*

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28

464.

This is a material misrepresentation, as reasonable consumers, parents, and guardians would be less likely to trust an addictive platform.

V.

M

A

465. Meta's disregard for the health and well-being of its Young Users is even more repugnant because its *Youngest* Users include children under age 13, who are prohibited from having accounts on Meta's platforms without verified consent from parents prior to collecting personal information of those under age 13.

466. Meta routinely obtains actual knowledge that its Youngest Users are on Meta's platforms without parental consent.

467. Meta surreptitiously and unfairly targets very young individuals to become users of its Platforms, including Instagram, making the platforms directed to children.

468. Instead of obtaining verifiable parental consent, Meta

Meta's

KEMP JONES, LLP

3800 Howard Hughes Parkway

Seventeenth Floor

Las Vegas, Nevada 89169

(702) 385-6000 • Fax (702) 385-6001

kjc@kempjones.com

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

402

22

23

24

25

26

27

28

1 [REDACTED]
2 [REDACTED]
3 [REDACTED]
4 [REDACTED]
5 [REDACTED]
6 [REDACTED]

7 475. Upon information and belief, Meta has confirmed its knowledge of specific
8 under age 13 user accounts through its review of data generated by Meta's age-estimation
9 algorithms confirming that millions of individual Facebook accounts belong to children under
10 age 13.

11 476. In sum, Meta [REDACTED]
12 [REDACTED]
13 [REDACTED]
14 [REDACTED]
15 [REDACTED]
16 [REDACTED]

17 477. Children under the age of 13 are particularly vulnerable to the harms caused by
18 Defendants' social media platforms, and Meta's conduct violates longstanding societal norms
19 meant to protect children, and to preserve parents' autonomy to ensure the same.

20 CAUSES OF ACTION

21 **COUNT I: DECEPTIVE ACTS OR PRACTICES BY DEFENDANTS IN VIOLATION** 22 **OF NEVADA'S DECEPTIVE TRADE PRACTICES ACT** (N.R.S. §§ 598.0903 THROUGH 598.0999)

23 478. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
24 fully set forth herein.

25 479. The Attorney General is authorized to bring an action—independently in the
26 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in

27 407 [REDACTED]
28 [REDACTED]”)

1 Nevada—to remedy violations of the Deceptive Trade Practices Act. *See, e.g.*, NRS 598.0963
2 and 598.0999.

3 480. At all times relevant herein, the Defendants violated the Nevada Deceptive Trade
4 Practices Act, §§ 598.0903 to 598.0999, by repeatedly and willfully committing deceptive acts
5 or practices, in the conduct of commerce, which are violations of the Act.

6 481. The Attorney General is authorized to bring an action in the name of the State to
7 remedy violations of the Deceptive Trade Practices Act. NRS §§ 598.0999. This action is proper
8 in this Court because Defendants are using, have used, and/or are about to use practices that are
9 unlawful under the Act. NRS § 598.0915(5).

10 482. Defendants willfully committed deceptive trade practices because of false
11 representations as well as omission of material facts. *See* NRS § 598.0915(5); *see also* §§
12 598.0915(2) (“[k]nowingly makes a false representation as to the source, sponsorship,
13 approval or certification of goods or services for sale...”), 598.0915(3) (“[k]nowingly makes
14 a false representation as to affiliation, connection, association with or certification by another
15 person”), and 598.0915(15) (“[k]nowingly makes any other false representation in a
16 transaction”).

17 483. Defendants acted knowingly under Nevada law, which states that under the
18 NDTPA, “‘knowingly’ means that the defendant is aware that the facts exist that constitute the
19 act or omission.” *Poole v. Nev. Auto Dealership Invs., LLC*, 2019 Nev. App. LEXIS 4, *2.
20 Similarly, “a ‘knowing[]’ act or omission under the NDTPA does not require that the defendant
21 intend to deceive with the act or omission, or even know of the prohibition against the act or
22 omission, but simply that the defendant is aware that the facts exist that constitute the act or
23 omission.” *Id.* at *8 (alteration original).

24 484. As set forth in Sections IV and V, *supra*, Defendants knowingly failed to
25 disclose the material facts concerning the true nature of the risks of harm posed to Young Users
26 on Instagram.

1 485. As set forth in Sections IV and V, *supra*, Defendants knowingly misrepresented
2 to regulators and the public that Instagram was safe for Young Users, and prioritized the
3 wellbeing of Young Users, when in fact Defendants knew that those representations were false.

4 486. As set forth in Sections IV and V, *supra*, Defendants, at all times relevant to this
5 Complaint, willfully violated the Deceptive Trade Practices Act by committing deceptive trade
6 practices by representing that Instagram “ha[s] ... characteristics, ... uses, [or] benefits” that it
7 does not have. NRS § 598.0915(5).

8 487. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
9 deceptive trade practices by causing confusion or misunderstanding as to the safety and risks
10 associated with the Instagram social media platform. NRS § 598.0915(2).

11 488. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
12 deceptive trade practices by making “false representation as to [the] affiliation, connection,
13 association with or certification” of Instagram. NRS § 598.0915(3).

14 489. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
15 deceptive trade practices by representing that Instagram was “of a particular standard, quality
16 or grade” (to wit, designed to be safe for Young Users), despite knowing that this was not true.
17 NRS § 598.0915(7).

18 490. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
19 deceptive trade practices by representing that Instagram is safe and not harmful to Young Users’
20 wellbeing when such representations were untrue, false, and misleading. NRS § 598.0915(15).

21 491. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
22 deceptive trade practices by using exaggeration and/or ambiguity as to material facts and
23 omitting material facts, which had a tendency to deceive and/or did in fact deceive. NRS §
24 598.0915(15).

25 492. As set forth in Sections IV and V, *supra*, Defendants willfully committed further
26 deceptive trade practices by failing to disclose a material fact in connection with the sale or
27 lease of goods or services. Nev. Rev. Stat. Ann. § 598.0923(1)(b).
28

1 493. As set forth in Section V, *supra*, Defendants willfully committed further
2 deceptive trade practices by violating one or more laws relating to the sale or lease of goods or
3 services. NRS § 598.0923(1)(c).

4 494. As set forth in Sections IV, *supra*, Defendants willfully committed further
5 deceptive trade practices by making false assertions of scientific, clinical or quantifiable facts
6 in its advertisements and public statements which would cause a reasonable person to believe
7 that such assertions were true. NRS § 598.0925(1)(a).

8 495. Defendants' deceptive representations, concealments, and omissions were
9 knowingly made in connection with trade or commerce, were reasonably calculated to deceive
10 the public and the State, were statements that may deceive or tend to deceive, were willfully
11 used to deceive the public and the State, and did in fact deceive the public and the State.

12 496. As described more specifically above, Defendants' representations,
13 concealments, and omissions constitute a willful course of conduct which continues to this day.
14 Unless enjoined from doing so, Defendants will continue to violate the Nevada Deceptive Trade
15 Practices Act.

16 497. But for these representations, concealments, and omissions of material fact,
17 Nevada's Young User citizens (and their families) would not have suffered the harms detailed
18 herein.

19 498. Defendants' deceptive trade practices are willful and subject to a civil penalty
20 and equitable relief. NRS § 598.0999.

21 499. Because Defendants' deceptive trade practices are toward minors, Defendants
22 are subject to additional civil penalties and equitable relief. NRS § 598.09735.

23 500. Each exposure of a Nevada Young User to Instagram resulting from the
24 aforementioned conduct of each Defendant constitutes a separate violation of the Nevada
25 Deceptive Trade Practices Act.

26 501. Plaintiff, State of Nevada, seeks all legal and equitable relief as allowed by law,
27 including *inter alia* injunctive relief and all recoverable penalties under all sections of the
28

1 Deceptive Trade Practices Act including all civil penalties per each violation, attorney fees and
2 costs, and pre- and post-judgment interest.

3 **COUNT II: UNCONSCIONABLE ACTS OR PRACTICES BY DEFENDANTS IN**
4 **VIOLATION OF NEVADA’S DECEPTIVE TRADE PRACTICES ACT**
5 **(N.R.S. §§ 598.0903 THROUGH 598.0999)**

6 499. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
7 fully set forth herein.

8 500. The Attorney General is authorized to bring an action—independently in the
9 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in
10 Nevada—to remedy violations of the Deceptive Trade Practices Act. *See, e.g.*, NRS 598.0963
11 and 598.0999.

12 501. At all times relevant herein, Defendants violated the Nevada Deceptive Trade
13 Practices Act, §§ 598.0903 to 598.0999, by repeatedly and willfully committing unconscionable
14 trade practices, in the conduct of commerce, which are violations of the Act.

15 502. The Attorney General is authorized to bring an action in the name of the State to
16 remedy violations of the Deceptive Trade Practices Act. NRS §§ 598.0999. This action is proper
17 in this Court because Defendants are using, have used, and/or are about to use practices that are
18 unlawful under the Act. NRS § 598.0915(5).

19 503. As set forth in Sections I-III, *supra*, Defendants willfully committed
20 unconscionable trade practices in designing and deploying the Design Elements on the
21 Instagram social media platform. Such conduct violates the NDTPA’s prohibition of knowingly
22 using “an unconscionable practice in a transaction.” NRS § 598.0923(1)(e).

23 504. Defendants acted knowingly under Nevada law, which states that under the
24 NDTPA, “‘knowingly’ means that the defendant is aware that the facts exist that constitute the
25 act or omission.” *Poole v. Nev. Auto Dealership Invs., LLC*, 2019 Nev. App. LEXIS 4, *2.
26 Similarly, “a ‘knowing[]’ act or omission under the NDTPA does not require that the defendant
27 intend to deceive with the act or omission, or even know of the prohibition against the act or
28 omission, but simply that the defendant is aware that the facts exist that constitute the act or
omission.” *Id.* at *8 (alteration original).

1 505. The Design Elements identified in Sections I-III, *supra*, are “unconscionable
2 trade practices” because they (1) “[t]ake[] advantage of the lack of knowledge, ability,
3 experience or capacity of the consumer to a grossly unfair degree;” and (2) “[r]esult[] in a gross
4 disparity between the value received and the consideration paid, in a transaction involving
5 transfer of consideration.” NRS § 598.0923(2)(b)(1)-(2).

6 506. NRS § 598.0923(2)(b)(1): As discussed, *supra*, the Design Elements represent a
7 vast asymmetry in sophistication and knowledge between Defendants, on the one hand, who
8 have devoted extensive time, energy, and resources in identifying ways in which Young Users
9 may be manipulated and exploited into compulsive use of Instagram; and Young Users (and
10 their caretakers), on the other hand, who do not—and could not be expected to—have the same
11 fundamental and sophisticated knowledge of behavioral psychology, biology of young people,
12 and social media platform design principles. This asymmetry in knowledge is compounded by
13 the fact that Defendants knowingly and intentionally hide, obscure, or minimize critical
14 information, preventing public access to anything that might be damaging to their reputation
15 and that would alert the public to the harms identified herein.

16 507. NRS § 598.0923(2)(b)(2): Further, as discussed, *supra*, use of the Instagram
17 platform is a transaction that involves consideration (exemplified by the fact that Defendants
18 seek to bind Young Users to, *inter alia*, a contract in the form of Instagram’s Terms of Use).
19 Due to the harms identified herein that afflict Young Users as a result of using Instagram, and
20 which are the result of the Design Elements deployed by Instagram for purposes of inducing
21 compulsive use of the platform, the disparity between the value received and the consideration
22 paid is so vast as to be unconscionable.

23 508. As described more specifically above, Defendants’ conduct is willful and
24 continues to this day. Unless enjoined from doing so, Defendants will continue to violate the
25 Nevada Deceptive Trade Practices Act.

26 509. But for this unconscionable conduct, Nevada’s Young User citizens would not
27 have suffered the harms detailed herein.
28

1 510. Defendants' unconscionable practices are willful and subject to a civil penalty
2 and equitable relief. NRS § 598.0999.

3 511. Because Defendants' unconscionable practices are toward minors, Defendants
4 are subject to additional civil penalties and equitable relief. NRS § 598.09735.

5 512. Each exposure of a Nevada Young User to Instagram resulting from Defendants'
6 aforementioned conduct constitutes a separate violation of the Nevada Deceptive Trade
7 Practices Act.

8 513. Plaintiff, State of Nevada, seeks all legal and equitable relief as allowed by law,
9 including *inter alia* injunctive relief and all recoverable penalties under all sections of the
10 Nevada Deceptive Trade Practices Act including all civil penalties per each violation, attorney
11 fees and costs, and pre- and post-judgment interest.

12 **COUNT III: PRODUCT LIABILITY – DESIGN DEFECT**

13 512. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
14 fully set forth herein.

15 513. The Attorney General is authorized to bring an action—independently in the
16 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in
17 Nevada—to remedy violations of Nevada law.

18 514. Defendants created and maintain Instagram, and therefore are manufacturers of
19 Instagram.

20 515. As set forth in Sections I-III, *supra*, Instagram has a design defect (the Design
21 Elements) that renders it unreasonably dangerous. Specifically, Instagram failed to perform in
22 the manner reasonably to be expected in light of its nature and intended function and was more
23 dangerous than would be contemplated by the ordinary user having the ordinary knowledge
24 available in the community.

25 516. As set forth in Sections I-III, *supra*, the defect existed at all times relevant hereto,
26 including the time the product left the manufacturer (*i.e.*, Defendants).

27 517. As set forth, *supra*, the defect caused injury to Young Users in Nevada.
28

1 518. As a result of Defendants’ conduct, the State is entitled to—and does—seek
2 damages (including punitive damages) in an amount to be proven at trial.

3 **COUNT IV: PRODUCT LIABILITY – FAILURE TO WARN**

4 518. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
5 fully set forth herein.

6 519. The Attorney General is authorized to bring an action—independently in the
7 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in
8 Nevada—to remedy violations of Nevada law.

9 520. Defendants created and maintain Instagram, and therefore are manufacturers of
10 Instagram.

11 521. As set forth in Sections I-V, *supra*, Instagram has a defective warning that
12 renders it unreasonably dangerous. Any and all representations, misrepresentations, and
13 omissions made in relation thereto that Defendants made regarding the suitability and safety of
14 Instagram for Young Users have not been accompanied by suitable and adequate warnings
15 concerning its safe and proper use.

16 522. As set forth in Sections I-V, *supra*, Defendants had reason to anticipate that a
17 particular use of Instagram—*i.e.*, its use by Young Users—may be dangerous without such
18 warnings.

19 523. As set forth in Sections I-V, *supra*, any warning that Defendants made in
20 connection with Young Users’ use of Instagram was not (1) designed so it can reasonably be
21 expected to catch the attention of the consumer; (2) be comprehensible and give a fair indication
22 of the specific risks involved with the product; and (3) be of an intensity justified by the
23 magnitude of the risk.

24 524. As set forth in Sections I-V, *supra*, the defective warning existed at all times
25 relevant hereto, including the time the product left the manufacturer (*i.e.*, Defendants).

26 525. As set forth in Sections I-V, *supra*, the defect caused injury to Young Users in
27 Nevada.
28

1 526. As a result of Defendants’ conduct, the State is entitled to—and does—seek
2 damages (including punitive damages) in an amount to be proven at trial.

3 **COUNT V: NEGLIGENCE**

4 526. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
5 fully set forth herein.

6 527. The Attorney General is authorized to bring an action—independently in the
7 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in
8 Nevada—to remedy violations of Nevada law.

9 528. Defendants had and continue to have a duty to exercise reasonable care in
10 designing, implementing, maintaining, and otherwise introducing Instagram into the stream of
11 commerce.

12 529. This duty of reasonable care extends to Young Users in the State of Nevada.

13 530. As set forth in Sections I-V, *supra*, Defendants breached that duty.

14 531. As a result of Defendants’ breach of that duty, Young Users in Nevada have
15 been injured.

16 532. Defendants’ conduct was the legal cause of that injury.

17 533. As set forth in Sections I-V, *supra*, Defendants’ conduct was willful, wanton,
18 malicious, reckless, oppressive, and/or fraudulent.

19 534. Plaintiff, the State of Nevada, seeks all legal and equitable relief as allowed by
20 law, including *inter alia* injunctive relief, restitution, disgorgement of profits, compensatory
21 and punitive damages, and all damages allowed by law to be paid by the Defendants, attorney
22 fees and costs, and pre- and post-judgment interest.

23 **COUNT VI: UNJUST ENRICHMENT**

24 534. Plaintiff repeats and realleges the preceding paragraphs of this Complaint as if
25 fully set forth herein.

26 535. The Attorney General is authorized to bring an action—independently in the
27 name of the State as well as in a *parens patriae* capacity on behalf of the persons residing in
28 Nevada—to remedy violations of Nevada law.

7 538. Defendants accepted the benefits conferred.

539. It would be unjust to allow Defendants to retain the benefits conferred without paying their reasonable value.

11 Wherefore, Plaintiff respectfully prays that the Court grant the following relief:

12 A. On the First Cause of Action, Judgment in favor of the State and against
13 Defendants declaring that all acts and omissions of the Defendants described in this Complaint
14 constitute multiple, separate violations of the Deceptive Trade Practices Act and that thereby
15 Defendants willfully and knowingly violated the Nevada Deceptive Trade Practices Act, NRS
16 §§ 598.0903 to 598.0999;

B. On the Second Cause of Action, Judgment in favor of the State and against Defendants declaring that all acts and omissions of the Defendants described in this Complaint constitute multiple, separate violations of the Deceptive Trade Practices Act and that Defendants willfully and knowingly violated the Nevada Deceptive Trade Practices Act, NRS §§ 598.0903 to 598.0999;

C. On the Third Cause of Action, Judgment in favor of the State and against Defendants that Defendants' challenged social media platform contains one or more design defects that caused damages as alleged herein;

D. On the Fourth Cause of Action, Judgment in favor of the State and against Defendants that Defendants failed to provide adequate warnings about the challenged social media platform and that failure caused damages as alleged herein;

1 E. On the Fifth Cause of Action, Judgment in favor of the State and against
2 Defendants that Defendants' negligence caused damages as alleged herein;

3 F. On the Sixth Cause of Action, Judgment in favor of the State and against
4 Defendants that Defendants were unjustly enriched as alleged herein;

5 G. That Plaintiff recover all measures of damages allowable under all applicable
6 State statutes and the common law, but in any event more than \$15,000, that Judgment be
7 entered against Defendants in favor of Plaintiff, and requiring that Defendant pay punitive
8 damages;

9 H. That Defendants be ordered to pay civil penalties pursuant to the Deceptive
10 Trade Practices Act including disgorgement and civil penalties of up to \$15,000 for each
11 violation of the Deceptive Trade Practices Act, and up to \$25,000 for each violation of the
12 Deceptive Trade Practices Act directed toward a minor person;

13 I. That Plaintiff be awarded all injunctive, declaratory, and other equitable relief
14 appropriate and necessary based on the allegations herein;

15 J. That, in accordance with the Nevada Deceptive Trade Practices Act, Defendants,
16 their affiliates, successors, transferees, assignees, and the officers, directors, partners, agents,
17 and employees thereof, and all other persons acting or claiming to act on their behalf or in
18 concert with them, be enjoined and restrained from in any manner continuing, maintaining, or
19 renewing the conduct, alleged herein in violation of the above stated Nevada laws, or from
20 entering into any other act, contract, or conspiracy having a similar purpose or effect;

21 K. That Plaintiff recover the costs and expenses of suit, pre- and post-judgment
22 interest, and reasonable attorneys' fees as provided by law; and

23 L. That the Court order such other and further relief as the Court deems just,
24 necessary, and appropriate.

25 ///

26
27 ///

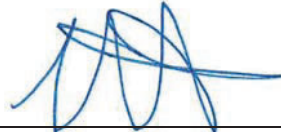
1 **JURY DEMAND**

2 Pursuant to NRCP 38(b), Plaintiff hereby demands a trial by jury on all issues so triable.

3 Dated January 30, 2024

4 Submitted By:

5 

6 

7 AARON D. FORD, ESQ.
8 Attorney General
9 ERNEST FIGUEROA, ESQ.
10 Consumer Advocate
11 MARK J. KRUEGER, ESQ. (#7410)
12 Chief Deputy Attorney General
13 **State of Nevada, Office of the Attorney**
14 **General, Bureau of Consumer**
15 **Protection**
16 100 North Carson Street
17 Carson City, Nevada 89701-4717
18 T: (702) 684-1100; F: (702) 684-1108
19 mkrueger@ag.nv.gov

MICHAEL J. GAYAN, ESQ. (#11135)
m.gayan@kempjones.com
J. RANDALL JONES, ESQ. (#1927)
r.jones@kempjones.com
DON SPRINGMEYER, ESQ. (#1021)
d.springmeyer@kempjones.com
KEMP JONES, LLP
3800 Howard Hughes Parkway, 17th Floor
Las Vegas, Nevada 89169
T: (702) 385-6000; F: (702) 385-6001

15 N. MAJED NACHAWATI, ESQ.
16 mn@ntrial.com
17 BRIAN E. MCMATH, ESQ.
18 bmcmath@ntrial.com
19 PHILIP D. CARLSON, ESQ.
20 pcarlson@ntrial.com
21 (pro hac vice forthcoming)
22 **NACHAWATI LAW GROUP**
23 5489 Blair Road
24 Dallas, Texas 75231
25 T: 214-890-0711; F: 214-890-0712

DAVID F. SLADE, ESQ.
slade@wh.law
(pro hac vice forthcoming)
WH LAW
1 Riverfront Place, Suite 745
North Little Rock, Arkansas 72114
T: (501) 404-2052; F: (501) 222-3027

26 *Attorneys for Plaintiff State of Nevada*

KEMP JONES, LLP
3800 Howard Hughes Parkway
Seventeenth Floor
Las Vegas, Nevada 89169
(702) 385-6000 • Fax (702) 385-6001
kjc@kempjones.com